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The Slave of the Mine; Or, Jack Harkaway in 'Frisco.

By DELACROIX HEMING.

CHAPTER I.

THE MINE-OWNERS.

"What's the game?"

"Well, I should think it you didn't. Last night you were in the mine, you see."

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"THE MINE-OWNERS. JACK HARKAWAY WAS PROBABLY SEVEN YEARS OF AGE, WHICH WAS TOO YOUNG TO BE IN THE MINE. BUT HARKAWAY WAS BORN IN THE PACIFIC STATES AS A GOLD MINER."

was not a bad-looking man in the mine. In reality, Don Harkaway was known all over the Pacific States as a gold miner.

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The ELACHTHIDE REMYND

¹⁰ See Miller, *supra* note 4, 111 *supra* at 1008-1009 (noting that the Supreme Court has not yet ruled on whether the right to privacy extends to the use of contraceptives).

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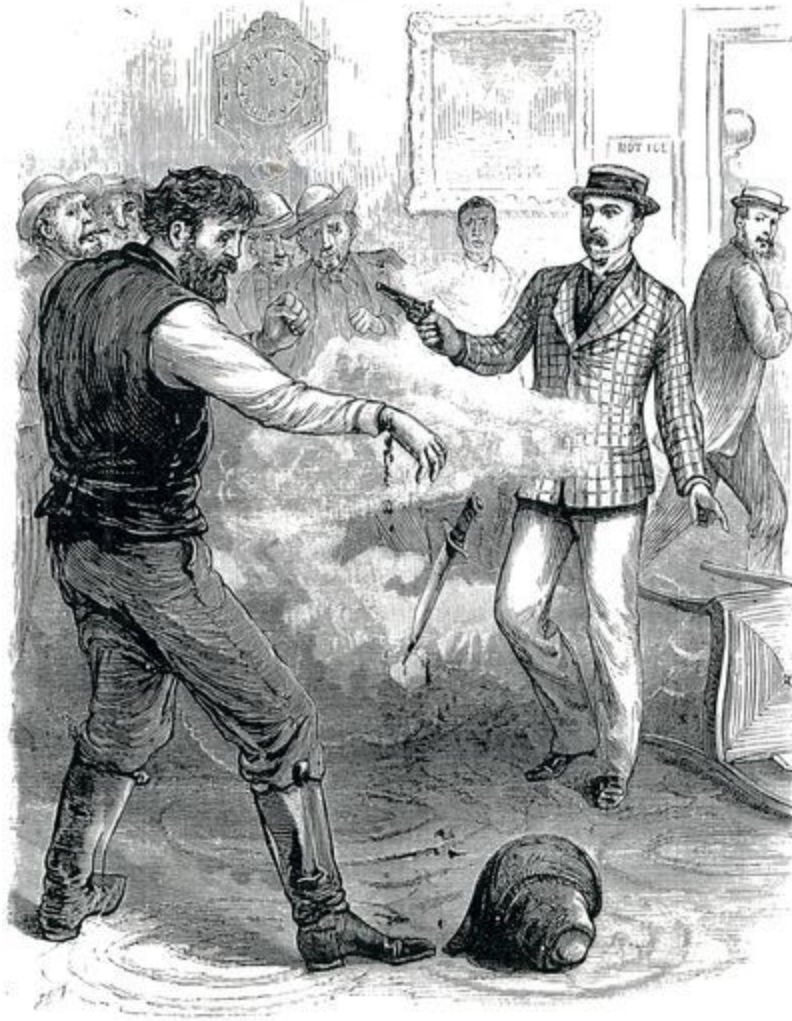
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*** START OF THE PROJECT GUTENBERG EBOOK THE SLAVE OF
THE MINE; OR, JACK HARKAWAY IN 'FRISCO ***

The Slave of the Mine; Or, Jack Harkaway in 'Frisco.

By BRACEBRIDGE HEMYNG.



"THE BULLET STRUCK NAPPA BILL ABOUT THE MIDDLE OF THE WRIST, AND, WITH A FEARFUL OATH, HE ALLOWED HIS KNIFE TO DROP ON THE FLOOR."

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CHAPTER I.

THE GAMBLING-HOUSE.

"I rather like this game!"

"Well, I should smile if you didn't. Luck's dead sot in for you now, you can bet."

"Perhaps," said the first speaker; "but I don't propose to follow it up."

"What?"

The second speaker sprang from his chair in amazement.

"No. I flatter myself I know when to stop. I have played at Baden and Monaco, in the clubs of London and the hells of Paris, as well as the gambling saloons of the West, and I'm not to be picked up for a flat."

"That's sure; but look at here; as sure as my name is Dan Markham, and I'm known as a profesh at gambling from here to Cheyenne and Virginia City, and lettin' alone Omaha, you're wrong."

"Why?"

"When you've got a run of luck, play it for all it is worth."

"You think so?"

"My friend, fortune is within your grasp. Play on the ace and copper the jack, I tell you," replied Dan Markham.

"Thank you. I don't want any one to dictate to me."

With this quiet answer the first speaker piled up his checks and received an equally large pile of gold twenty-dollar pieces, which he placed in an inside pocket of his coat. Then he laughed harshly.

"I don't know why I do this sort of thing," he remarked. "It isn't because I want the money."

"I'll tell you," replied the gambler.

The lucky player rose from his seat and the game went on, there being a dozen or more men present who were intent upon it.

The game was faro.

Slowly and solemnly the dealer took the cards out of the box, and with equal solemnity the players moved their checks as their fancy dictated.

The first speaker was a man of a decided English cast of countenance, and the profusion of side whiskers which he wore strengthened his Britannic look.

He was well dressed, handsome, though somewhat haggard, as if he suffered from want of sleep, or had some cankering care gnawing at his heart.

A gold ring, set with turquoise and diamonds, sparkled on his finger, and his watch chain was heavy and massive. The gambler was probably forty years of age, which was ten or twelve more than his companion, and his face bore traces of drink and dissipation; but there was a shrewd, good-natured twinkle in his eye which showed that he was not a bad-natured man in the main. In reality, Dan Markham was known all over the Pacific Slope as a good fellow.

Retiring to the lower end of the room, the first speaker accepted a glass of wine which was handed him by a negro waiter who attended on the supper-table.

"You were saying, Mr.—er—Mr.——" he began.

"Markham," replied that individual.

"Ah, yes! Thank you! Well, you were observing——"

"Just this: I know why a man plays, even though he's well fixed and has got heaps of shug."

"Do you?"

"Yes, Mr.—er—Mr." continued Markham, imitating his companion's tone in rather a mocking manner.

"Smith. Call me Smith."

"All right, Smith; you play because you want the excitement. That's the secret of it. You've got no home."

"That's true."

"No wife?"

"No."

"Exactly. If a man's got a home, and the comforts, and the young ones, and in fact all that the word implies, he don't want to go to a gambling-saloon. No, sir. It's fellows like you and me that buck the tiger."

The person who had designated himself as Mr. Smith smiled.

"You are an observer of human nature?" he said.

"Well, I guess so. Pete!"

"Yes, sah!" replied the negro.

"Give me some of that wine. Darn your black skin, what do I keep you for?"

"You don't keep me, sah!" replied the negro.

"Don't I, by gosh? It's me, and fellows like me, that keep this saloon a-going, and that keeps you."

Pete made no reply, but opened a new bottle and handed the gambler a glass of the sparkling wine.

"Going to play some more, stranger?" asked Dan.

"I may and I may not. As I feel at present I shall look on," replied Mr. Smith.

"How long have you been in this country?" continued Dan.

"All my life."

"Hy?"

"I was born here."

"Whereabouts?"

"In Maine."

"Oh, come now; you can't play that on me. You're a Britisher."

Mr. Smith colored a little and looked rather vexed.

"Doesn't it strike you, my friend," he said, "that you are a trifle inquisitive?"

"It's my way."

"Then all I have to say is that it is a mighty unpleasant way, and I don't like it for a cent."

"Is that so?"

"Yes."

"Then you can lump it," replied Dan Markham, lighting a cigar and staring him in the face.

Mr. Smith evidently did not want to have a quarrel, for he walked away and strolled through the rooms, of which there were four.

These rooms were elegantly furnished, provided with sofas and easy-chairs. On the tables were all the best periodicals and magazines, so that frequenters of the gambling-house could while away their time without actually playing.

But the tables possessed a fascination which Smith, as he called himself, could not resist.

He strolled back to the faro game and watched the play, which kept on incessantly.

When one player fell out, another took his place, and so it went on, all night long, till the garish streaks of the gray dawn stole in through the shades of the windows, and the men who turned night into day thought it prudent to go home.

A young and handsome man attracted Mr. Smith's attention. He was well dressed, and had an air of refinement about him. His eyes were bloodshot and his face haggard. His hands clutched the chips nervously, and he was restless, feverish and excited.

He pushed the clustering chestnut locks from his fair brow, and watched the cards as they came out with an eagerness that showed he took more than an ordinary interest in the game.

His luck was villainous.

He lost almost every time, and when he tried to make a "pot" to recoup himself, it was all the same—the wrong card came out.

At length he put his hand in his pocket and found no more money there.

With a sigh he rose from the table, and with bowed head and bent back, his eyes lowered and his face wearing an expression which was the embodiment of despair, he walked away.

Mr. Smith followed him.

This was a type of character and a situation he evidently liked to study.

"Ruined! Ruined!" he muttered.

At this juncture he encountered Dan Markham, who had been paying his respects to some boned turkey, and making a very respectable supper.

The professional gambler can always eat and drink, the fluctuations of the game having very little effect on his appetite.

"Hello! Baby," he exclaimed; "you here again to-night?"

"As you see," replied the young man, whose feminine cast of countenance justified the epithet of "Baby" which the gambler had bestowed upon him.

"I thought I told you to keep out of here."

"I know it."

"Then why didn't you follow my orders?"

"Because I couldn't. It was here that I took the first downward step, and to-night I have taken the last."

The gambler regarded him curiously.

"Clarence Holt," he said, "have you been drinking?"

"Not a drop; but it is time I did. My lips are parched and dry. I am on fire, brain and body. Is this a foretaste of the hereafter in store for me?"

"Weak-minded fool!" cried Dan.

"Yes, I was weak-minded to trust you. I was a fool to listen to your rose-colored stories about fortunes made at a faro-bank."

"Come, come! no kicking."

During this conversation Mr. Smith was leaning against the wall, half concealed in the shadow, and smoking a cigar, while he was ostensibly engaged in jotting down some memoranda with a pencil on a scrap of paper, yet not a word was lost upon him.

"You can bully me as much as you please, Dan Markham!" exclaimed Clarence Holt. "But I warn you that I am getting tired of it."

"Tired, eh?"

"Yes, sir; there is a limit to human endurance."

"Is there? Since when did you find that out?" sneered Dan.

"To-night. I have lost a whole month's salary."

"What of that? I'll lend you money."

"Yes, on the terms you did before," replied Clarence Holt, bitterly. "You have made me forge the name of the manager of the bank in which I am employed to the extent of three thousand dollars."

"That isn't much."

"I can never pay it."

Dan Markham lowered his voice almost to a whisper.

"Yes, you can," he said.

"How?"

"Steal it. You have every opportunity."

"And become a thief?"

"Yes."

"Never!"

"Why not? Are you not already a forger? I hold three notes of Mr. Simpson, the manager of the Bank of California, which he never signed, though you did it for him; and if those notes are presented for payment you will go right up to the State Prison at Stockton quicker than railroading."

Clarence Holt groaned deeply.

He was, indeed, in the power of this man, and, struggle as he could, he was unable to extricate himself.

Mr. Smith gathered from this conversation that Dan Markham had got the young man in his power with some object in view.

Clarence Holt was a clerk in the Bank of California, and had forged the name of Mr. Simpson, the manager, to the extent of three thousand dollars, Markham holding the forged notes.

That evening Clarence had risked his whole month's salary at faro, and lost. Hence his despair and agitation were fully accounted for.

"What do you want of me?" asked Clarence.

"My money."

"What will you take for the notes?"

"Double their face-value, and then I'll hand them over to anybody."

Mr. Smith stepped forward and bowed politely.

"Pardon me," said he. "Did I understand you to say that you are anxious to sell some notes?"

"Oh! it's you, Mr. Smith," replied Markham. "If you've got six thousand dollars to throw away on security which is only worth three, we can deal. I want to go to Sacramento to-morrow, and I'll sell out."

"I have overheard the entire conversation," said Mr. Smith, "and I sincerely commiserate this young man, who has fallen into the hands of a sharper!"

"Throwing bricks, eh?"

"Never you mind, my friend. Hand over the notes and I will give you the money."

Markham produced a wallet which was filled with papers and bills, among which he searched until he found the documents of which he was in want.

"Here you are," he exclaimed. "I'd like to find a fool like you every day in the week."

"Would you?"

"If I did, I'd die rich."

Laughing heartily at his own joke, Markham handed over the notes and received the six thousand dollars in exchange.

"Thank you," he added, and extending his hand to Clarence Holt, he said: "Good-by. Take my advice. It's straight. Never bet on a card again."

Nodding carelessly to Mr. Smith, he knocked the ash off his cigar and left the room.

When he was gone, Clarence Holt grasped Mr. Smith's hand.

"How can I thank you?" he exclaimed.

"My dear fellow," replied Mr. Smith, "you have nothing to thank me for."

"Nothing!"

"No, indeed."

"But you have saved me," said Clarence. "You are a whole-souled, generous-hearted man. Give me the forged notes, that I may tear them up, begin again, and, leading a new life, bless you for ever."

A cynical smile curled the lip of Mr. Smith.

"Not so fast, my young friend," he said.

"What do you mean?"

"Simply that I am not your friend, and that I have not done anything of a particularly generous nature."

"How?"

Clarence Holt's countenance fell again as he ejaculated this monosyllable.

"You have only exchanged one master for another," replied Mr. Smith.

"Really, sir," said Clarence, "I am at a loss to understand you. I took you for a gentleman who, having by accident overheard a conversation which was not intended for his ears, endeavored to atone for his conduct by doing what lay in his power to help——"

"Don't catechise me, if you please," interrupted Mr. Smith.

"I have no wish to be offensive."

"If you had I would not allow you to gratify your inclination. Mr. Markham has handed you over to me, and I have bought you."

"Bought me?"

"Why, certainly."

"May I ask your reason for acting in such an eccentric manner?"

"Yes; I like to buy men. It is a fancy of mine. I find them useful occasionally."

Clarence Holt bit his lip.

"Where do you live?"

A card containing an address in Mission Street was handed to him, and, glancing carelessly at it, he put it in his pocket.

"When I want you," he said, "I shall know where to find you."

A rebellious fire burnt in Clarence's eye.

"Suppose I refuse to do your bidding?" he asked.

"Oh! well, in that case I should go to the bank and show the authorities the notes I have bought. I presume they would see that you were punished, and taken care of for a year or two."

Clarence pressed his hands together violently.

"Oh! have I come to this?" he cried. "Would to God I had taken my dear wife's advice and never gambled!"

Mr. Smith looked at him.

"Married, eh?" he remarked.

"Yes, sir."

"Pretty wife?"

"The most divine creature you ever saw. I suppose I am a partial judge, and that my opinion is not to be relied on; but I assure you, sir, that no artist or poet ever conceived so lovely a specimen of womanhood as my darling Elise."

"Humph! How long have you been married?"

"Three years."

"And in love still?"

"Yes, indeed; more than ever."

"Odd way of showing your love, coming to a gambling-house. Any children?"

"One little girl. But allow me to explain. I came here with my month's salary to try and make money enough to pay off Markham, who has been my ruin. Now I have not a dollar to go home with, and how we are to live I do not know."

Mr. Smith took a dozen twenty-dollar gold pieces out of his purse.

"Take these," he said.

"You will lend them to me?" cried Clarence, delightedly.

"I give them to you. What is the use of lending money to a pauper? I give this to you just as I would give an alms to a beggar."

"Your words are very bitter," said the young man, as he shivered visibly.

"There is no necessity for me to be silver-tongued with you," was the reply.

"Go home to your wife. I will call and see you soon."

Mr. Smith threw himself into a chair, and appeared to take no further notice of Clarence, but he was seated in a manner which permitted him to have a good view of the gambling-table.

At first Clarence Holt hurried toward the door, as if full of virtuous resolution to return home.

Then he paused, and turned off toward the lunch table, where he ate a little salad and drank some wine.

The gold pieces were burning a hole in his pocket.

They were amply sufficient to live upon for a month; but if he could only double them!

Surely his bad luck could not stick to him all the evening.

He would try again.

"What time is it?"—he looked up at the clock—"only eleven!" Elise, his little wife, has got the baby to sleep by this time and is probably reading, while eagerly expecting his return home. Another hour will make no great difference.

He goes to the table and buys some checks, with which he begins to speculate.

Mr. Smith laughs with the air of Mephisto, and says to himself:

"I knew it. Score one to me again for having some knowledge of character. He is a weak man and easily led. So much the better for me."

Presently a lady, thickly veiled, entered the saloon and looked timidly around her.

Evidently she was searching for some one.

Seldom, indeed, was a lady seen in the saloon, for it is not the custom for the fair sex to gamble in America, whatever they may do in Europe.

The negro in charge of the lunch-table advanced toward her.

"What you want heah, ma'am?" he asked.

"I am looking for a gentleman," she replied, in a nervous tone.

"Plenty ob gen'elmen come and go all night. It's as hard as de debble to find any one in dese ar rooms."

"He is my husband. Perhaps you know him. His name is Clarence Holt," continued the lady.

"Oh! yes, for suah. I know him."

"Then I implore you to tell me if he is here. Where is the room in which they play?"

"No place for ladies, dat; besides, Marse Holt him been gone an hour or more with Marse Markham."

"Is he with that bad man? Ah, me! what future have I and my child now?"

She pressed her hands to her face and sobbed, while the negro held the door open.

Suddenly there was a loud cry from the inner room, in which the game was progressing.

"By heaven. I win! Give it me. It is all mine. All—all," shouted a man.

Mrs. Holt uttered a scream.

"'Tis he!" she cried. "Wretch, you have deceived me. Stand on one side. I heard my husband's voice, and I will see him."

She pushed past the negro, who would fain have stopped her had he been able to do so, but her movements were too quick for him to intercept her.

"This is becoming decidedly interesting," observed Mr. Smith; "Elise has come after Clarence. By Jove!" he added, as she raised her vail, "she justifies his description of her. A prettier creature I never saw!"

The luck had changed, and Clarence had been fortunate enough to win largely, as a pile of gold by his side fully testified.

The young wife tapped him on the shoulder.

"Clarence," she whispered.

"You here?" he cried, while a flush of annoyance crossed his face.

"Oh, yes; forgive me. Come home, will you not?"

"How dare you follow me here?"

"I was so lonely. I found a note from Markham appointing a meeting here, and I knew you had your salary with you. We have no food in the house, and——"

"Confound you!" he interrupted, almost fiercely. "Do you want every man here to know our private affairs?"

"What are these men to you, Clarence?"

"Go home. I will come when I am ready. You distract me. Go!" he exclaimed.

Sadly she turned away. Her tears flowed fast, and so broken-hearted was she that she did not bestow one glance at the feverish and excited face of her erring and misguided husband.

At the door she was confronted by Mr. Smith, who bowed politely.

"Madame," he exclaimed, "permit me to have the honor of escorting you to your carriage."

Elise Holt looked up in surprise.

"I have no carriage, sir," she answered.

"Then I will get you one."

"But I have no money to pay for one."

"My purse is at your service."

"Oh, sir," she exclaimed, blushing, "it would not be right for me to accept a favor from a perfect stranger."

"Pardon me, I am a friend of your husband."

"Is that so? Well, if you know Clarence, will you not persuade him to come home?"

She looked pleadingly at Mr. Smith.

"I will do more than that," he rejoined.

"How?"

"I will see to it that he does come to you in half an hour. Come, take my arm."

Elise did not hesitate any longer, but timidly placed her little delicately-gloved hand on the arm of the handsome stranger, who was so kind and generous.

"Ah!" she thought, "if I had married him instead of Clarence!"

They descended the stairs together, and her tears ceased to flow.

CHAPTER II.

A SURPRISE.

In the street they saw a carriage, which Mr. Smith hailed, and when it drove up he placed Mrs. Holt inside.

"Drive this lady to No. 113 Mission Street," he exclaimed.

Elise opened her eyes wide with astonishment.

"You know where we live!" she ejaculated.

"Certainly I do. Good-evening. Clarence shall be home in half an hour."

He handed the driver two dollars, and Elise was taken to her apartments in a luxurious style which was entirely new to her.

Mr. Smith returned to the gambling-saloon, much impressed with the modesty and beauty of Elise.

"Decidedly, she is too good for Clarence," he muttered.

Once again in the gilded saloon of vice he looked in vain for Clarence among the players.

"Where is the young man who was winning?" he asked of the dealer.

"He has dropped out," was the answer.

"A loser?"

"Yes. He staked his pile on one card, and somehow it didn't come up as he expected."

"Fool!" remarked Mr. Smith.

He walked through the suite of handsomely-furnished rooms to see where Clarence was, because he could not have left the place, or he would have been met on the stairs.

In an inner apartment he saw a sight which startled, though it did not surprise him.

Mr. Smith was a man of the world, whom it was difficult to surprise, as it was part of his education and temperament not to exhibit emotion at anything.

Kneeling before a large mirror, his face pale and haggard beyond expression, was Clarence Holt.

In his right hand he held a pistol, and in his left a photograph of Elise, which he was kissing passionately.

It was a sad picture, and showed to what desperate straits drink and gambling can reduce their votaries.

Suddenly he dropped the picture and placed the muzzle of the pistol to his temple.

"God forgive me," he prayed, "and help the widow and the orphan. Elise, my darling, my life, my all, farewell."

Mr. Smith rushed forward and knocked up his arm, so that at this most critical moment in the young man's career the weapon went off without injuring him, and the ball lodged in the ceiling.

It was a narrow escape.

"Idiot," cried Smith, "what are you thinking of?"

Clarence Holt looked repentant and abashed.

"I have spent your money," he replied. "I repulsed my wife. I am a wretch, unworthy to live."

"Get up and go home."

"Alas! I have no home now. My money is gone and——"

Mr. Smith interrupted him by allowing to flutter down at his side a one hundred-dollar bill, giving it to him as carelessly as one casts a bone to a dog.

"For me!" asked Clarence, eagerly snatching it.

"No, for Elise and your child," was the reply. "Give it to her. A fellow like you deserves nothing but a good thrashing."

"That's what I say," answered Clarence, the old, despairing look coming over him again. "Let me die."

Mr. Smith looked disgusted.

"If you don't leave off whining," he exclaimed, "I shall be strongly tempted to kick you!"

Clarence did not move; he picked up his hat and left the pistol where it had fallen.

"Be a man," continued Mr. Smith. "Don't be afraid of the world and the world won't hurt you."

Humiliated, and with his head in a whirl, Clarence quitted the room, and Mr. Smith re-entered the gambling-saloon, in which was a noisy party of miners who, having come into town with plenty of money, could not resist the fascinations of faro.

All at once Mr. Smith was confronted by a man, who exclaimed:

"So we have met sooner than I expected!"

"Harkaway," repeated the person who called himself Smith.

"At your service, my lord," was the reply.

Jack had met Lord Maltravers.

This gentleman was an English nobleman of high rank and great wealth.

They had met in New York, and both had fallen in love with a young lady named Lena Vanhoosen.

Lena's brother Alfred wished her to marry Jack, but her mother, Mrs. Vanhoosen, wished her to espouse the rich nobleman.

Jack and Lord Maltravers had quarreled about Lena.

The quarrel took place in a well-known up-town resort, and Maltravers had fired a pistol at Jack.

The shot missed its mark, but the cowardly nobleman had to fly to avoid arrest.

He retreated to San Francisco, and Jack, learning where he had gone, followed him.

They met in the gambling-saloon.

His lordship was perfectly collected after the first shock of surprise had passed away, and he did not attempt to escape.

"So you have followed me?" he observed.

"That is an unnecessary question to ask," replied Jack. "You see I am here."

"Not at all. You might have been making a tour of California, but since you have declared that you followed me, may I ask your reason?"

"To bring you to justice for attempting my life, after which I shall marry Miss Vanhoosen."

"So you have gone into the detective business, Mr. Harkaway? I congratulate you," said his lordship, sarcastically.

"It was time for me to do something."

"Well, you have found me. What next?"

"I shall arrest you."

"Here?"

"Certainly, my lord. I shall be my own police officer, and not give you a chance to run away."

Lord Maltravers laughed harshly.

"My dear fellow," he replied, "what do you take me for?"

"Precisely for that which I know you to be."

"And that is——"

"An unmitigated scoundrel."

"Thank you; personality seems to be your forte," said Maltravers. "And now let me tell you one thing: I am no child to be arrested by you."

"We shall see," answered Jack.

The room, as we have said, was full of rough characters, who were noisy, and inclined to be riotous; wine was flowing freely.

"Boys!" cried Maltravers, in a stentorian voice.

Instantly he was the centre of attraction.

"Do any of you want to make a stake of a hundred dollars?"

"Yes, yes!" replied a dozen men.

"Then put a head on this man for me."

He held out five twenty-dollar gold-pieces in one hand and pointed to Harkaway with the other.

A big man, over six feet high, apparently strong as a horse, with a well-developed biceps muscle, stepped forward.

He had several scars on his face, and had lost one eye, which gave him a ghastly appearance.

"That money's mine," he exclaimed.

"You can have it if you are my man."

"Hand it over."

Lord Maltravers gave him the gold, and at the same time Jack took a step in advance.

"You shall not escape me in that way," he said.

"Hold on there," cried the volunteer.

"Oh, I'm not afraid of you," cried Jack.

"I'm Nappa Bill," said the man, "and if I can't make you squeal, I want to go home."

"Listen to me," said Harkaway. "This fellow is a notorious murderer, and is wanted in New York."

"New York be darned!" said Nappa Bill. "If he has killed his man, there are lots of us in this room who has done the same thing, and his money is as good to me as any other chap's. Let him go, and then you an' me's got to talk."

Seeing that it would be useless to attempt to arrest his lordship after the turn affairs had taken, Jack relinquished his idea.

"Gentlemen, I will leave you to amuse yourselves," exclaimed Maltravers.

Jack was furiously indignant, and burned with rage as he saw his enemy make for the door.

"Stop!" he cried.

"To oblige you? Oh, dear, no. I rather think not. I shall be glad to meet you at Foster's Cliff House to-morrow at two, if you will promise to come unattended."

"I will be there."

"On my terms?"

"Yes."

"Very well; we can then discuss the situation; for the present, it will be enough to say good-night."

Always a polished villain, Maltravers bowed and took his departure.

Jack was baffled, and was about to sit down to consider what he should do, when Nappa Bill made a furious lunge at him with a knife.

Seeing the movement, he stepped on one side and escaped being killed by almost a miracle.

Being armed, he drew a pistol.

"Keep off," he said, "or I'll shoot."

"That's good enough. I like to see a man heeled. I'll have more pleasure in cutting you now," answered Nappa Bill.

"What do you want to fight me at all for?"

"Wasn't I paid for it? Why, look at here, I'd scorn to take the man's money and do nothing for it."

"Come on, then. The sooner this thing is settled the better."

Nappa Bill did not want to be asked twice; he accepted the invitation and threw himself upon Jack, who received a slight flesh-wound in his shoulder.

Drawing himself quickly back, he fired a snap-shot at the ruffian, not having time to take aim.

The bullet struck Nappa Bill about the middle of the wrist, and with a fearful oath he allowed his knife to drop on the floor.

"Curse you!" he cried. "You've broken my wrist."

"It's all your own fault," replied Jack, coolly. "I did not provoke this contest, as all the gentlemen here present, I am sure, will testify. You have made a little money by your conduct, but I guess it will all go in doctor's bills."

At this there was a laugh.

Nappa Bill bound up his injured hand with a napkin, which he snatched from the arm of the negro waiter.

Looking earnestly at Jack, he said:

"I'm cornered this time, and I'll own up that you got the best of me, but by thunder, I'll get square with you, colonel, if it takes me all my life."

"Ah, pshaw! fellows like you can't harm me."

"Are you betting money on that?"

"I never bet with your class," replied Jack.

"What's my class?" inquired Nappa Bill.

"Loafers, frauds and beats."

"You're kind of high-toned, aren't you?" sneered Nappa Bill. "They're all gentlemen where you come from, I should imagine; don't have to work and look around for a living."

"It matters very little who or what I am," replied Jack, "but if you pick me up for a fool you'll find that you never made a greater mistake in your life."

"That's all right, but remember that Nappa Bill is your open enemy."

Jack put his pistol back in his pocket, and with a careless laugh quitted the room.

There were several men standing in his way, but they quickly made space for him.

Nappa Bill did not attempt to injure him further. He contented himself with using some strong adjectives, which would not look well in print.

Harkaway had won the first move in the game.

CHAPTER III.

MALTRAVERS'S PLOT.

Early on the following day Maltravers presented himself at Clarence Holt's lodgings, on Mission Street.

He found the husband and wife at breakfast.

They both rose and welcomed him, though it was apparent that there was more fear than warmth in their reception.

"Go on with your breakfast," he said; "don't mind me."

"Thank you, I am through," replied Clarence, who lost all appetite at the sight of the man who held him in his power; "it is time I started for the bank."

"You need not trouble yourself about business to-day."

"How?"

"I want you to do a little work for me."

Elise looked reproachfully at her husband.

"If you neglect your duties you will lose your situation!" she exclaimed.

"I will find him another if that should happen," said his lordship. "Can I talk with you alone, Holt?"

"Certainly, sir."

He handed the paper to his wife, and added:

"Go, my dear, to your room, and amuse yourself with the news until I am at liberty."

Elise, with an ill grace, quitted the room, wondering what secret business the two men were about to transact.

With the quick instinct of a woman, who is always more or less of a disciple of Lavater, and a judge of male character, she took a dislike to Maltravers

when she had a fair opportunity of studying his face.

Not that he was homely. Far from it. He was just the sort of man to fascinate a woman, but there was a lurking devil in his features which betrayed the slumbering fire of wickedness within.

Her husband and Mr. Smith were closeted together for over an hour, when the latter left.

"You fully understand?" said his lordship, at parting.

"Perfectly."

"I leave for Calistoga this afternoon, and depend upon you."

"I will do my best, sir," replied Clarence, respectfully.

Closing the door, he sank into a chair and wiped the beads of perspiration from his forehead.

"He is not a man," he muttered; "he is a fiend."

Elise had entered the room.

"What is that you say?" she asked.

"Nothing," replied Clarence, evasively. "I have to go out. This evening I shall take you to the theatre."

"Indeed!"

Her eyes sparkled with pleasure, for it was not often that her husband of late had invited her out.

In happier days they were in the habit of going out together, but now Clarence left her alone with her baby.

He kissed her with some of the old-time tenderness, and the act brought the tears to her eyes.

"Oh, if you would always be like this," she said, "I should begin to feel happy again."

"The time will come, darling," he answered.

"God grant it. You have been so changed lately, Clarry. I have thought that you had some terrible secret on your mind."

"Oh, no."

"But tell me, will you not, what influence that man has over you?"

"What man?"

"Mr. Smith, he who was here with you. What were you talking about, and why has he kept you away from your work?"

"Little women should not ask questions," he replied.

With a deep-drawn sigh, Elise turned away to hide her tears, which flowed afresh, and Clarence Holt went out.

She felt that there was some awful secret which he kept concealed from her.

The brief happiness she had experienced was short-lived, and the heavy sensation which had oppressed her heart clung round it once more.

Clarence sent a note to the bank, excusing his absence on the plea of sickness, and going to a livery stable, hired a wagon and a pair of horses, with which he drove through the Golden Gate Park to Captain Foster's Cliff House.

On his way he looked frequently at a photograph which Maltravers had given him, underneath which was written the name "Jack Harkaway."

When he reached the Cliff House he put his horse under the shed and entered the bar-room.

Jack was already there, smoking a cigar by the window, and looking out at the seals on the rocks in the sea.

"Mr. Harkaway, I believe," said Clarence.

"That is my name, sir," replied Jack. "What is your business with me?"

"I am commissioned to give you a letter."

Jack took the proffered epistle from his hand, and tearing open the envelope, read the contents, which were as follows:

"I find it impossible to meet you to-day, as appointed, as I am making preparations to leave San Francisco at once, but I should like to see you this evening at the California Theatre. I have Box B. I will

formally give up all claims to a certain lady's hand, and if you will let me alone I will not molest you any more.

"M."

"Thank you," said Jack.

"What answer shall I take back?" asked Clarence Holt.

"Say I will be at the theatre."

He tore the note into fragments, and with a bow Clarence left him.

Presently he was joined by a tall, stout, florid-looking man, well dressed, and apparently well-to-do, who said:

"Fine day."

"Is it?" replied Jack, abstractedly.

"I said it was a fine day, sir."

"Well, what of it?" asked Jack.

"You're a Britisher, aren't you?"

"I am."

"Guessed so. Been here long?"

"Really, I don't see how the length of my residence in this country can possibly interest you," said Jack.

"Don't see it, hey?"

"No, I don't, and what is more, I am not in the habit of talking to strangers."

"Got to get cured of that. However, if you want an introduction, I'll give it to you. Here's my card."

Jack glanced at it, and read the name of "Captain Blower."

Out of politeness he exchanged cards with him.

"Mr. Harkaway, I'm glad to know you," said the captain. "I'm a Forty-niner, and you can bet I'm solid."

"Indeed?" remarked Jack, with a smile.

"Yes, sir. I own real estate, and I'm interested in a mine. How do you like our climate?"

"Pretty good in the morning, but rather cold and dusty in the afternoon."

"What do you think of our seals?"

These are the two first questions that San Franciscans always ask strangers.

"Oh, the seals didn't strike me as being anything wonderful," replied Jack.

"Aren't, eh?"

"They seem quiet, inoffensive-looking creatures as they lie on the rocks basking in the sun."

"I'll bet you wouldn't care to swim out and bring one back," exclaimed Captain Blower.

"Oh! That would be easy enough."

"I'll bet you."

"My dear Sir, I don't want to make a show of myself, or I'd do it in a moment."

"I'll bet you," said Captain Blower, a third time.

Harkaway grew irritated at his persistence.

"What will you bet?" he asked.

"Five hundred dollars."

"I don't like to take your money."

"There is more where that came from. You dursn't do it."

"Put it up," said Jack, promptly.

The captain walked over to a military-looking gentleman, and producing a roll of bills, counted out five hundred dollars.

"Foster!" he exclaimed to the proprietor of the Cliff House, "you know me?"

"Well, I should hope so," was the reply.

"I've bet this gentleman, Mr. Harkaway, five hundred that he can't swim out to the rocks and bring back a seal, and I want you to hold the stakes."

"I'll do it. But does the gentleman know that it's the breeding-season, and the seals are dangerous at this time of the year?"

Harkaway approached and handed over his money.

"That doesn't matter!" he exclaimed. "I'm willing to accept the bet. All I want is a bathing-suit and a sharp knife. That's fair, I hope."

"Certainly," said Mr. Foster.

"I don't object," replied Captain Blower.

"You see that big fellow half way up the biggest rock?" continued Jack, pointing to the sea.

"Yes; that is the one we call General Butler."

"All right, I'll undertake to bring him back, although I might win the bet by carrying off one of the small seals."

Foster admired his courage, but doubted his ability to carry out his determination.

He took Jack into a bedroom, where he donned a bathing-suit and was given a carving-knife, which was the most formidable weapon they had in the house.

Thus provided he walked down to the seaside by himself, while Foster and Captain Blower, armed with opera-glasses, sat on chairs on the piazza and watched his progress.

Jack was an excellent swimmer, and plunging into the sea, swam rapidly toward the seal-rocks.

He carried the knife between his teeth.

The seals, who could be numbered by hundreds, had crept out of the sea and were lying in various places on the rocks, apparently asleep.

Some must have been awake, however, for every now and then a loud bark was heard.

What Captain Foster had said about the seals being dangerous was perfectly true.

They had been bearing young, and were perfectly ready to repel any invasion of their territory.

This Jack did not know.

No one ever interfered with them, as it is a penal offense to shoot them, they being one of the shows of the city.

What would San Francisco be without its seals?

A pleasant swim of from ten to fifteen minutes' duration brought him to the largest of the three rocks.

The seals began to bark, and some dived into the water.

To climb up was very difficult, as the seaweed was wet and slippery, it being ebb tide.

One seal attempted to bite him, but a dexterous thrust with his knife gave the sea-lion his death-blow.

With praiseworthy perseverance Jack got up to where the big seal was disporting himself in the rays of the sun.

The animal showed its gleaming tusks and snapped at Jack's leg, missing it by half an inch.

Jack stooped down and tried to stab the huge beast, but his foot slipped, and he rolled over and over until he fell with a loud splash into the sea.

The seal had also lost its balance, and came toppling over on the top of him.

Fortunately, Jack had retained his hold of the knife.

When he rose to the surface, he found himself confronted by a dozen angry seals, and for some time a lively fight ensued.

The sea was stained with blood, and Jack received some bites, more or less severe, but not serious enough to disable him.

At length, by a dexterous thrust, he killed the huge seal he had at first singled out as his prey.

It keeled over, and grasping one of its fins, he dragged it laboriously to the shore, swimming with one hand.

"By thunder!" said Captain Blower, "I reckoned those critters would have chawed him up."

"It's his good luck they did not," replied Mr. Foster, lowering his opera-glass.

Clarence Holt had been one of the spectators of this singular scene.

"You are five hundred dollars out," he remarked.

"Oh, I don't care for that. A friend of mine, Mr. Smith, gave it me to speculate with," replied Captain Blower, smiling significantly.

Clarence was much surprised at this declaration.

"Are you acquainted with Mr. Smith?" he asked.

"Yes. Anything funny about that? It's not an uncommon name, is it?"

"Oh, no, but I happen to be employed by the same gentleman, that is all," answered Clarence; "and all I can say is, if Smith's agents are so numerous, I shouldn't like to be Jack Harkaway."

"Why, no," said Captain Blower. "It would tickle me to death to hold an insurance on his life."

Clarence, after this, drove off, more than ever impressed with the power and resources of his employer.

In time Jack appeared with his captive, which Mr. Foster said he would have stuffed in commemoration of the event.

Jack took a bath, plastered up his bites, and did not feel any the worse for his exploit.

Captain Blower paid the money and hurried away, as if he had other work to attend to.

Jack had ridden over, and calling for his horse, mounted and rode toward the Golden Gate Park.

Soon afterward a buggy came up behind him at a quick pace.

In it was Captain Blower, who gave utterance to a whoop which would have done credit to a Piute Indian on the war-path.

This cry startled Jack's horse, which started off at top speed.

Jack endeavored to rein him in, but the bridle broke, and he was utterly powerless to control or guide the maddened animal.

Some one had evidently tampered with the rein, half cutting it in two.

The gate of the park was drawing near, and Jack became very nervous, for if he got thrown on the hard road he would be killed.

Fortunately, the horse swerved and dashed across the sand-hills on the left, plowing up to his knees, and greatly diminishing his speed.

At length his rider saw a chance of throwing himself off in a soft place, and did so.

The horse came to a stop a little further on.

Jack walked up and examined the bridle, which, as he suspected, had been cut.

"Lord Maltravers's agents again. I cannot trust that man," he muttered. "It will be best to have him arrested to-night, at the theatre. I do not see why I should keep faith with him."

Mending the rein he walked the horse home, and at the hotel found his two old friends, Mr. Mole and Harvey, whom he had left in New York, and who had just arrived.

The professor walked with a stick, being yet a little lame.

Harvey was the bearer of a long letter and many kind messages from Lena Vanhoosen.

It was a great pleasure to Jack to see his friends, to whom he related what had happened since his arrival in San Francisco.

"By all means arrest Maltravers at the theatre to-night," said Harvey, "and put a stop to his intrigues, once for all."

"I will," replied Jack.

"Suppose I come in at the end of the first act and bring a police officer with me?"

"That will do," answered Jack.

Mr. Mole had gone outside in the corridor, and all at once Jack and Harvey heard a great uproar.

They rushed out, and found the professor attacking a man with his crutch.

"Hold on, sir!" cried Jack. "What is all this about?"

Mr. Mole stopped beating the man, who instantly ran away.

"I can't stand it, Jack," said Mr. Mole. "I'm an old man and my nerves are weak."

"What has occurred to ruffle your feathers?"

"I have only been half a day in San Francisco, and this man whom I was chastising asked me, for the twentieth time, how I liked the climate and what I thought of the seals."

"Ha, ha!" laughed Jack.

"It may be very funny, but there is a limit to human endurance," replied the professor, shaking his head, dismally.

"Oh! it's nothing when you get used to it," Jack said.

Mr. Mole retired to his room, evidently laboring under the impression that he had been badly used, and Harkaway went out with Harvey to promenade on Montgomery Street.

CHAPTER IV.

THE BOX AT THE CALIFORNIA THEATRE.

It was quite a gala night at the theatre, and every seat was taken.

The prima donna of an English Opera Company which had been delighting the town took a benefit.

Soon after the curtain rose Harkaway, in evening dress, sought the seclusion of Box B, to which he was shown by the usher.

"Any one inside?" asked Jack.

"Only a lady, sir," replied the usher, with a sly smile.

"A lady?"

"Yes, sir."

"Surely there must be some mistake. I expected to meet a gentleman."

"This is Box B," the usher said, opening the door.

Jack entered and bowed to a very pretty young lady, who was no other than Elise Holt.

She had been placed in the box by her husband, who had gone away, telling her that he had a little business to attend to, but would return shortly.

The opera was "Faust," which Elise liked very much, but she did not seem to be paying much attention to Gounod's music.

"I beg your pardon if I am intruding," exclaimed Jack. "I was invited here by a gentleman."

"You are expected, if you are Mr. Harkaway," replied Elise.

"I am that individual."

Elise rose and came hastily to the back of the box.

"Oh, sir," she said, "do not think ill of me. I owe a duty to my husband, and also one to you, though you are a stranger to me."

"Really, madam, I am at a loss to understand you," answered Harkaway, in some perplexity.

"You have an enemy."

"Yes, and a very bitter one."

"I know all. Let me be brief. If I do not make myself understood it is because I am agitated," said Elise. "You are brought here to-night in order to be ruined. Let me beg of you to fly."

Jack smiled.

"Oh, no," he replied. "That is not my way of doing things at all."

"You refuse?"

"Most distinctly. I must see this thing out."

"Then I am powerless to help you," said Elise, with a sigh.

"My dear young lady," exclaimed Jack, "I know I am living in the midst of danger, and you said so much that I have the strongest wish to hear more."

"Every moment is precious."

"Why waste any time, then? You seem to take an interest in me."

"I do, indeed. Oh! what shall I do?" cried Elise.

They were still standing at the back of the box, so that no one could see them, and the crash of the music prevented their voices from being heard.

"Speak! No one ever regretted telling the truth," said Jack; "and I can see by your face that you are too good a young lady to wish to conceal anything you ought to reveal."

Elise suddenly made up her mind.

"I will save you, if possible," she said. "Listen. I have heard my husband talking to a stranger. My husband is a clerk in a bank; he has committed forgeries to enable him to gamble. These forgeries are held by Mr. Smith, alias Lord Maltravers, who is your enemy."

"Ha!" ejaculated Harkaway.

"You expected to meet Lord Maltravers here this evening," pursued Elise.

"Candidly, you are right."

"He is gone to the Geysers to make terms with Vasquez, the bandit, to kidnap you."

"And then?"

"You are to be shipped to Rio de Janeiro, where for the remainder of your days you will work as a slave in the diamond mines of Brazil."

"But how is all this to be done, my dear girl?" asked Jack, smiling.

"I know not; they have their plans all made up. It is horrible."

"Is that all?"

"No. You love Miss Lena Vanhoosen, in New York?"

"I do."

"Well, my husband will come in presently."

"In here?"

"Yes, in this box, and accuse you of flirting with me. He will raise a disturbance. You are to be arrested. The case will be in all the papers tomorrow, and Miss Vanhoosen will be told that you are unfaithful to your vows."

Jack whistled.

Though Elise spoke quickly, and her story was disconnected in parts, it was, nevertheless, intelligible enough.

His enemy was actively at work.

"I thank you, very much," said he. "I am a thousand times obliged to you. Good-night."

"Good-night. It is not safe for you to stay here."

"No, indeed."

"You will not reveal what I have told you?" pleaded Elise.

"Not for worlds."

"They would kill me if they only knew."

Jack went to the door of the box and was about to depart, when he saw Elise's handkerchief lying on the floor. Always gallant, and quite a ladies' man, he stooped and picked it up.

"Your handkerchief, I think," he said; "allow me to return it."

"Thank you!" replied Elise.

He was about to give it to her, when the door of the box opened and Clarence Holt entered.

The latter pretended to be profoundly astonished.

"Elise!" he exclaimed, "who is this man?"

The poor girl, terribly frightened, sank into a seat.

"Answer me!" continued Clarence, "I insist upon it, for it is my right."

Jack stepped up to him.

"You need not continue this farce, sir!" he said, "for you know perfectly well that my name is Harkaway, for you met me at the Cliff House this morning."

"I deny it. I never saw you before in my life, and I want you to be good enough to explain how it is that I find you alone in a private box with my wife?"

"I shall give you no explanation."

"But I will have one," blustered Clarence.

"Ask Lord Maltravers," said Jack.

Clarence stepped back at this shot.

"Subterfuges will not avail you, sir," he replied. "This is my wife's handkerchief you hold in your hand. You are a villain and a trickster!"

"No man shall call me that," cried Jack.

He raised his fist and knocked Clarence down, which was precisely what that pliant tool of Lord Maltravers wanted.

Elise shrieked.

The attention of the whole house was quickly transferred to the occupants of Box B.

"Help! help!" shouted Clarence.

Two policemen who had been stationed outside now entered and seized Jack.

At the same time a newspaper reporter, who had also been told to be on hand, made his appearance.

"Arrest that man!" said Clarence. "I charge him with assaulting me, because I tried to protect my honor."

"I protest," exclaimed Jack.

The policeman, already heavily bribed, dragged him away to the station-house.

"What is it all about?" asked the reporter.

"I will tell you presently," replied Clarence.

To add to the confusion, Elise had fainted.

CHAPTER V.

VASQUEZ, THE BANDIT.

Harkaway was merely taken to the station-house and kept there half an hour.

This was all the indignity he was subjected to.

After this he was discharged, as no one came to make any complaint against him.

All Lord Maltravers wanted was the scene in the theatre, the scandal of which could be made into a very pretty story for the newspapers.

Harkaway's escapade, as it would be called, could be sent to Miss Vanhoosen, and her mind be poisoned by reading how Jack was caught in a box at the theatre with another man's wife.

This was part of his deep-laid plot.

Jack returned to the Palace Hotel, where Mr. Mole and Harvey were awaiting him.

They could not help laughing when they heard how Maltravers had succeeded in tricking him, after all.

"Never mind; there will be no harm done," said the professor. "You can write to Miss Vanhoosen, and your word will go further than anything he can say."

"It isn't what he can say," exclaimed Jack; "it's what the papers will print."

"Hang the papers!" growled Harvey.

"Of course," continued Jack, "Maltravers will send the papers to Lena, and you all know what women think of anything in print."

"It's a dirty, mean trick of Maltravers," said Harvey.

"So it is; but what if he carries out the rest of his programme, as the girl in the box described it, and sends our friend Jack to the Brazils?"

"I should look well as a galley slave," remarked Jack, laughing.

"It is no laughing matter," continued Mr. Mole.

"We won't leave him," said Harvey. "He shan't go out alone."

This being settled, they retired to rest.

The morning papers fully realized Jack's expectations, for they contained full and sensational accounts of the disturbance at the California Theatre.

Names were freely given, and the affair aroused the liveliest interest.

In vain Jack wrote letters explanatory of the occurrence. The papers would not insert them, so the lie went forth uncontradicted, and Maltravers was triumphant.

While Jack was chewing the cud of bitter reflection, he received a letter bearing the Calistoga postmark.

It was signed "Anonymous," and stated the following:

"If Mr. Harkaway wishes to meet Lord Maltravers, he can find him at the Geysers, in Northern California. Go to Fossville from Calistoga and you will find fresh instructions awaiting you, with Four-in-Hand Foss."

"Look at this," said Jack, handing the letter to Harvey.

Dick read it and replied:

"Queer! Who the deuce is Four-in-Hand Foss?"

"I'll find out, for I'll start for Calistoga to-day."

Mr. Mole entered at this juncture.

"And what will you go to Calistoga for?" he asked.

Jack read him the letter.

"It's a trap, my dear friend," replied the professor.

"Trap or no trap, I'm going," answered Jack.

He rang the bell and called his black servant, Monday.

"What's in de wind now, sah?" asked Monday.

"Pack up. We are going to start for the North."

That afternoon they crossed the bay in the steamer, and taking the steam-cars, reached Calistoga by nightfall.

In the morning they were surprised to hear that "Four-in-Hand Foss" was waiting outside their hotel.

Harkaway went down-stairs and asked to see Mr. Foss.

He was shown a tall, handsome man, between fifty and sixty years of age, who is well-known to every tourist on the Pacific Slope.

"Well, Mr. Foss," said Jack, after the introduction was effected, "to what am I indebted for the honor of this visit?"

"I heard you had arrived," replied Foss, "and that you intended to visit the Geysers. I own the road over the mountains, and I reckoned I'd drive you myself."

"Much obliged, I'm sure."

"You're welcome."

"Have you any message for me?" inquired Jack.

"You're Harkaway, aren't you?"

"Yes."

"Then I was told to tell you that you would meet the man you are in search of in the hills."

"Is that all?"

"All."

"Who told you?"

"Well," said Foss, "he's a fellow I've met around considerable, and he is called Nappa Bill."

"Nappa Bill!" repeated Jack. "That's the fellow I shot in San Francisco."

"Maybe—he wears one arm in a sling," replied Foss, carelessly.

"Will you breakfast with me?" perused Jack.

"I'll take a cocktail. Fact is, I'm not much on eating to-day."

"Why not? Has anything occurred to take away your appetite, may I ask?"

"I'm in mourning for a five-hundred dollar horse that died of the glanders, yesterday, and it isn't ten to one that I don't spill you out of the coach before I get you up the hill."

Jack invited him into the breakfast-room and introduced him to his companions.

When they had eaten something they got into the stage, which was drawn by six horses.

Foss was the best driver in California, and the way in which he handled a team was quite fascinating to Jack, who could "handle the ribbons" and "tool a pair of tits" as well as the next one.

The distance between Calistoga and Fossville was completed in about twenty-five minutes, the stage rolling about in the most alarming manner.

It was arranged they should stay for lunch, and Mr. Foss indulged in further demonstrations of grief for the five-hundred dollar horse.

That is to say, he drank enough champagne to float an ordinary rowing-boat.

At one o'clock they started to ascend the mountains on their way to the Geysers.

Harkaway was perfectly charmed by the magnificent scenery which he saw on all sides.

So engrossed was he in contemplating the wonders of nature that he did not see a man spring out in the middle of the road.

Nor did he notice half a dozen men form in line behind the stage.

These held blocks of stone in their hands, and when Foss brought his horses to a standstill, they placed the stones behind the wheels to prevent the stage slipping down hill.

They were fully armed with rifles and pistols; knives peeped out of their belts, and their faces wore an air of ferocious determination.

"Halt!" cried the leader.

It was at this command that Foss stopped his horses.

The leader wore his arm in a sling, and Harkaway had no difficulty in recognizing the familiar features of Nappa Bill.

"Throw up your arms," continued the leader.

Jack looked round and saw that they were surrounded.

"What shall we do?" he asked of Foss.

"Got to weaken," replied Foss.

Mr. Mole appeared very indignant and drew a pistol, which he discharged at Nappa Bill.

The bullet missed the mark, and Bill laughed loudly.

"Put up your iron, you old fool," he said; "we only want Jack Harkaway out of your crowd, and if we don't have him step down and out, right away, there'll be a circus here, with some dead bodies in it, mighty quick."

"Look at here," replied Foss. "I don't want people to think that I'm in this thing. You give me a message to take to Calistoga for you to this gentleman, Mr. Harkaway, and that's all there is in it."

"That is true, Foss; you are as square as they make them."

"Let us go on, then."

"Not till Harkaway gets out."

Harvey now leveled his pistol at Nappa Bill.

"You scoundrel," he said; "take that."

As before, the bullet flew wide of the mark.

"Ha, ha!" laughed Nappa Bill; "the ball isn't molded yet that can hit me."

Just then some one fired from behind, and Harvey fell into the stage with a bullet in his shoulder.

"My God, I'm hit!" he cried.

Jack rose up.

"We are overpowered," he exclaimed. "I do not wish my friends to suffer for my sake."

"Surrender!" said Nappa Bill.

Jack deliberately walked over to the man and threw down his pistol.

"This is a civilized State," he said. "You daren't murder me. Let my friends go on, and I will become your prisoner, for I know that there will be such a hue and cry in a day or two that California will be too hot to hold you."

"That's what you say," replied the robber, mockingly.

Harkaway folded his arms and stood his ground.

"Drive on, Foss," said the robber.

"Who the deuce are you, anyway?" asked Four-in-Hand Foss.

"Do you want to know, particularly?"

"If I didn't I shouldn't ask."

The robber drew himself up proudly to his full height.

"I am Vasquez, the bandit," he cried.

Foss indulged in a prolonged whistle.

"Jerusalem!" he said, hitting his horses. "Git up thar. That settles it. I didn't count on meeting with Vasquez."

"No hard feelings, old man," cried Vasquez, who had concealed his identity under the name of Nappa Bill.

"Not at all, pard. So long."

The horses started, and the stage went on up the hill.

Harkaway was in the custody of Vasquez and his men, while Mr. Mole, half frightened to death, and Harvey, dangerously wounded, were slowly carried away, it not being in the power of Foss to prevent this consummation.

Jack turned smilingly to his captor, and said:

"Now, Mr. Vasquez, if that is your name, what are you going to do with me?"

"My dear sir," replied Vasquez, the celebrated bandit, about whose crimes the whole of California was excited, "I will allow some one else to answer that question."

A man stepped forward.

He had been concealed in the bush hitherto, but directly Jack saw him he recognized Lord Maltravers.

"Mr. Harkaway," said Maltravers, "you have kindly fallen into the little trap I laid for you. It is with great pleasure that I meet you again, and I shall now send you on a trip which will take you to South America."

Jack turned pale.

He saw how foolish he had been to despise the power of his lordship.

"What mean you?" he asked.

"Simply that you are on your way to the diamond mines of Brazil."

"You cannot be in earnest?"

"Never more so in my life, I assure you."

"Villain!"

Lord Maltravers twirled his mustache.

"Yes," he replied, complacently, "I am all that the word implies."

"But——"

"I cannot waste time in talking to you. Pray excuse me," interrupted Maltravers.

Vasquez, the bandit, took hold of Jack's arm and led him away.

Six men with pistols leveled followed on each side.

Escape was impossible.

Lower down in the road a stage was in waiting, and it conveyed the party in two days to the coast.

Jack was put on board a sailing vessel.

The captain was named Moreland.

"You have your orders?" said Vasquez to Moreland.

"Yes," replied the captain; "my instructions are in writing."

"See that they are fulfilled to the letter."

"I will."

Vasquez left the ship, and Harkaway was confined in the captain's cabin, where he could amuse himself with books and papers.

That afternoon the ship sailed, and Jack was bound for a long voyage.

Lord Maltravers was triumphant again.

Jack now blamed himself for yielding so easily, but he reflected that if he had made any resistance his whole party would have been killed.

The odds against them were too great.

Wondering if Harvey was much hurt, and consoling himself with the reflection that his friends knew where to look for him, he lighted a cigar which he found on the table, and waited for Captain Moreland to come to him.

CHAPTER VI.

THE SLAVE OF THE DIAMOND MINES.

The ship on which Jack Harkaway was a prisoner took out a general cargo for the Brazils.

Captain Moreland at once put Jack at his ease.

He assured him that there was no reason why he should be treated harshly.

The vessel had not been two hours at sea before he requested his presence in his cabin.

Jack was not in an enviable position, nor was he in an amicable frame of mind, but he felt that he was in the captain's power, and it would be advisable for him to treat him with civility.

The colored steward placed a couple of bottles with glasses on the table, as well as a box of cigars, and retired.

"Be seated," said the captain. "You smoke, I presume?"

"Yes," replied Jack.

"Help yourself," continued Moreland, pushing the box of cigars over to him. "The wine is port and sherry; which do you prefer?"

Jack liked sherry, and they pledged one another.

He now had a good opportunity of looking at Moreland, who was a spare, short man, with reddish hair and small, twinkling eyes, which appeared to have a treacherous expression.

"I wish to have you as my friend and companion during our voyage," began Moreland.

"Nothing would give me greater pleasure," replied Jack.

"Of course I need not conceal anything from you?"

"It is useless."

"Well, I admit that I have been paid handsomely by Vasquez, the bandit, to convey you to Rio. He, I believe, was employed by some enemy of yours."

"Precisely. I know all that."

"I shall enjoy your society during the voyage, for I see you are an educated gentleman, and your companionship cannot fail to be agreeable."

"Thank you for the compliment," exclaimed Jack, who could not help thinking that there was something lurking behind this extraordinary civility.

"When you arrive at Rio our intimacy ceases, for I shall discharge cargo, take in another of bags of coffee, and return to 'Frisco."

"Am I to be set free then?"

"Certainly," answered Moreland.

"I cannot understand that."

"It is simple enough. Your enemy wishes to get you out of the way for a time. That is all."

"I heard," said Jack, "that I was, in some mysterious way, to be sent as a slave to the diamond mines."

"Not by me, at all events," laughed the captain.

"Are you sure?"

"Perfectly. My instructions are simply to land you at Rio, and there will end my duty as regards you."

Jack could not make this out.

He was forced, however, to be content with the assurance given him by Captain Moreland, and there the conversation ended.

There were plenty of books in the cabin. He messed with Moreland. Everything he wanted was placed at his service, and he really had a very pleasant voyage round Cape Horn.

The captain succeeded in thoroughly gaining his confidence, and he soon voted him an excellent fellow, from whom he would be sorry to part when the time came.

At length Rio was reached, and as Jack was almost without money, Moreland volunteered to advance him some for current expenses, taking in return a sight draft on his agent in San Francisco.

When the ship swung into the dock, and the bills of lading had been given to the consignees, Moreland invited Jack to dine with him.

"I know the city," he remarked, "and can take you to a good place."

Jack accepted the invitation, and they walked out together.

As they quitted the ship, the captain slipped something into Harkaway's pocket, without the action being perceived.

They walked to the restaurant indicated by Moreland, and Jack's suspicions returned as he saw it was in a low part of the town.

What was his professed friend's object in steering him toward the slums, as he was evidently doing?

"Not a very savory neighborhood, this," he ventured to observe.

"No, but you will be amply compensated, my friend, by the cooking, at the little hotel we are in search of."

"Oh, I comprehend," said Jack. "I am prepared to sacrifice a great deal for artistic cooking."

They soon reached a dingy-looking inn, where the waiters and landlord nodded familiarly to the captain, as if he was an old customer.

The room into which they were ushered was dark and dirty, the table-cloths uninviting, and directly Jack saw the place he had an admonition of coming evil.

"Really," he remarked, "this is as bad as Zola's *Assommoir*. I can't congratulate you on your taste."

"Wait a while," responded Moreland. "Landlord, a bottle of wine, and the best dinner you can get ready."

"Si, signor," replied the proprietor, who was a swarthy, thick-set, beetle-browed Spaniard.

The wine was produced, and seemed to Jack to have a peculiar flavor.

Being thirsty, he drank heartily of it, while Moreland contented himself with sipping it.

"You don't drink?" observed Harkaway.

"Excuse me, I rarely do before eating; it takes away my appetite."

A dizziness began to attack Jack, and a soft, sensuous, dreamy feeling stole over him.

What could it mean?

Had he been brought into the place by his kind friend, the captain, to be drugged and betrayed into some carefully set trap?

Indeed, it looked like it.

"What is the time?" said the captain.

"I have no watch," replied Jack. "Vasquez kindly relieved me of that trifle in the Nappa Valley."

"I had mine when I left the ship," continued Moreland, "and I have been with no one but you."

"What do you mean by that?" asked Jack.

It appeared as if there was some latent accusation in this remark.

"Oh, nothing," answered the captain. "I have to report to the American Consul at three, and it is necessary that I should know the time."

He began to search in all his pockets.

Jack watched him with an abstracted air, while his stupor increased, and it seemed all the time as if it was too much trouble for him to speak.

"Very odd where that watch of mine is gone to," continued Moreland.

"Very," ejaculated Harkaway.

"Are you sure you have not taken it?"

"I?"

Jack was dumbfounded with astonishment, and could only stare at Moreland.

"I must have this investigated," said the latter. "Waiter!"

"Signor?"

"Call an officer—quick!"

Jack was like one in a dream.

He could not believe that what he heard was real.

Some insidious drug had been mixed with the wine, and like the opium-eater, he was seeing and hearing things that did not exist.

Presently the waiter returned with a policeman.

"Who wants me?" he inquired.

"I do. Arrest and search that man. I accuse him of stealing my watch."

He pointed to Harkaway, whom the officer approached.

Jack endeavored to rise and strike his false friend, but he seemed to have lost all power over his limbs.

Obscured as his intellect was, however, by the drugged wine, he saw that he was the victim of an infamous plot, the depth of which, as yet, he could scarcely gauge.

Moreland had won his confidence to prevent his making a charge of abduction against him on their arrival in Rio.

That was clear enough.

What was to follow remained for coming events to develop.

The officer began to search Jack, who laughed in a half imbecile manner, as if it was a good joke, and made no resistance.

In his coat pocket were found a watch and chain.

"Is that yours?" asked the officer, holding it up.

"Yes. I will swear to it. Besides, my name is on the case. It was a present to me. Oh! the ingratitude of some people!"

"Shall I arrest the thief?"

"Yes; lock him up. I will follow and make the complaint."

Jack was dragged rudely from the room to the police court, which was not far off.

Captain Moreland hastily settled the bill and followed his victim.

A magistrate was sitting on the bench, and Jack soon had a specimen of how swiftly justice is administered in Brazil.

Moreland told his story, stating how he had given the prisoner a passage from San Francisco, and how he had returned his kindness by stealing his watch, while under the influence of liquor.

"He is drunk now," he added, "or perhaps he would not have done it."

"Do you press the charge?" asked the court.

"It is my duty to society to do so."

Turning to the prisoner, the court asked him if he had anything to say.

Jack was more and more under the influence of the drug, whose effects made themselves felt in a greater degree every minute.

He thought he was dreaming, and continued to laugh at what he thought was an excellent joke.

"No," he replied.

"I shall sentence you to five years' hard labor in the mines!" exclaimed the magistrate.

"That's all right," replied Jack; "I knew that was coming."

He laughed louder than ever.

The jailer took him to a cell and locked him up. He soon fell into a profound slumber, from which he did not awake until the following morning.

Captain Moreland was perfectly satisfied, for he fulfilled his contract with his employer to the letter.

There was no chance of his victim's being pardoned, and little of his escaping.

Practically, he was out of the way for five years, during which time Lord Maltravers could prosecute his plans with regard to Miss Vanhoosen.

Perhaps the hardships he would encounter in the mines might enfeeble his magnificent physique, and kill him before his sentence expired.

When Jack woke up in his cell he pressed his hand to his aching head and exclaimed:

"Where the deuce am I?"

He sat up and reflected.

"Seems to me," he continued, "I had a dream. Moreland invited me to dine; accused me of stealing his watch. Hang his impudence! I was arrested, and got five years in the mines. *Was* it a dream?"

A look at the cell convinced him that it was not so much a dream as a terrible reality.

The perspiration broke out all over him, and he began to feel terribly alarmed.

Presently the jailer entered with a suit of convict's clothes and some breakfast.

"Eat and dress," he said.

"Certainly," replied Jack; "but let me ask you a few questions."

"Be brief."

"Am I a convict?"

"You are."

"Is there no appeal? Cannot I communicate with the English or American Consul?"

"No time for that," replied the jailer. "In half an hour the chain-gang starts for the mines, and you are one of them."

"For heaven's sake, do something for me!"

The jailer shook his head.

"I am innocent," asseverated Jack.

"The stolen property was found on you. It is a clear case. An angel could not save you."

"But I assure you, my friend, that I am innocent. It is a base conspiracy of which I am the victim."

"Eat and dress!" said the jailer, harshly. "In half an hour I shall come and fix the chain on you."

With these words he banged to the door with a hollow, sepulchral sound, which to Jack sounded like the knell of doom.

He recognized the fact that he was indeed a slave.

"Well," he muttered, "I must admit it was cleverly done; to repine is useless. I will make the best of the situation. Harvey, if not mortally wounded, will come after me. Thanks to what Elise said, my friends know where I am."

He deliberately ate his breakfast, and then attired himself in the hideous yellow suit of a convict sent to the mines.

In the present there was no hope.

It was to the future that he had to look for comfort, assistance and freedom.

Many were the wild tales he had heard of the sufferings in the mines by the poor creatures condemned to toil there.

His heart sank within him as he recalled these stories.

Yet in the midst of all his misery the fairy-like form of Lena Vanhoosen would come before him.

She seemed to be ever bidding him hope on, and telling him that it is always darkest before dawn.

When the half hour was up the jailer, relentless as fate itself, appeared, and fastened a chain around his ankle.

In the court-yard of the prison twenty unfortunates, similarly situated, were assembled.

They were all chained together, and at the word "March," the gate was thrown open and they slowly filed out.

Part of the journey was performed by railway, the convicts having a special car, but a considerable distance had to be traversed on foot, and this was painful and toilsome.

Every week the ranks of the miners, depleted by sickness and death, were reinforced by fresh batches of criminals.

It was seldom that a mine slave lasted longer than five years.

The wretches, cruelly tasked and badly fed, broke down and perished miserably.

The government worked the mines for its own benefit, entirely by convict labor, and made a handsome profit out of it, for the labor cost them nothing but what they paid for food, and often diamonds of large size, first water, and great value were found when the mines were reached. The prisoners were detailed to certain sections, and Jack had to work underground with a desperate-looking ruffian whose name was Alfonso.

The most favored prisoners worked above ground, receiving the "dirt" as it came up the shafts, and washing it in the streams which flowed down from the sides of the mountains.

These were watched by overseers, and the diamonds were, when found, handed to superintendents.

The men worked in couples, and were allowed to talk. They had three meals a day of coarse food, and slept in wooden huts at night, laboring from dawn to dusk.

Jack and Alfonso were supplied with a pickax, a shovel and a basket.

They first picked down the earth or diamond-studded dirt, then shoveled it into the basket, afterward carrying it to the nearest shaft, where it was taken in hand by others, and sent up to the surface.

"What are you in for?" asked Alfonso.

"They say I took a man's watch, and I got five years," replied Jack.

"That's nothing," continued Alfonso; "I killed my man, and I was sent 'down' for life."

Jack shuddered.

He was in the company of a murderer.

"Don't I wish I could get away!" continued the ruffian.

"What would you do?" asked Jack.

"Can you keep a secret?"

"I guess so."

"I tried to escape, but the soldiers, who are always on guard, night and day, saw me and fired. They brought me down. I've the bullet in my leg now."

"Is that so?"

"Yes; but they didn't get it," said Alfonso, laughing.

"It? What do you mean by 'it'?"

"The diamond, my lad. I've got the biggest beauty that ever came out of the mines."

"You have?"

"Yes, sir. It's worth a king's ransom. It ought to be in the crown of a royal personage. It's fit for an emperor."

"Is it so fine?"

"Magnificent. It's as big as the Koh-i-noor, which is the largest in the world. I shall never get out, though, so what use is it?"

He sighed deeply.

"Why don't you give it to the authorities?" inquired Jack.

"Can you tell me why I should?"

"No."

"Do they treat us too well?"

"No, indeed."

"Aren't we slaves and dogs, and lead a life of utter and hopeless misery?"

"Very true."

"They shall never have it. No, my lad. It's safe; but I've taken a fancy to you, and if anything happens to me, I want you to know where it is."

Jack expressed his thankfulness for this proof of the convict's good will.

"Where is it?" he asked, his curiosity being aroused.

The convict bared his right leg and advanced to the lamp which gave them the light by which they were working.

"Any one around?" he asked.

"I can't see any one," replied Jack.

"You never can tell when the overseers come around. They're on the spy all the time."

"We are alone," Jack said.

"See here, then."

Alfonso took his hand and placed it on his flesh. Jack felt a lump under the skin.

"What's that?" he asked.

"The diamond," replied Alfonso, under his breath.

"Impossible! how could it get there?" Jack asked, incredulously.

"Didn't I tell you they brought me down with a bullet?"

"Yes."

"Well, they saw it had lodged just under the skin, and the brutes didn't think it worth while to get the doctor to cut it out. A day or two afterward I found the diamond."

"Well?"

"So I takes a knife and cuts it out myself, and seeing there was room for the bullet, I shoved the diamond into the hole and let the skin grow over it and there it is now."

"In your body?"

"In my living body," replied Alfonso, "and no word of a lie about it."

"Didn't it hurt?"

"I'll bet you it did. I suffered the tortures of the damned for weeks, and it hurts now if I strain myself or lie on that side."

Jack was overpowered with astonishment.

"You've got grit in you," he remarked.

"Didn't I tell you I killed my man? Any one who's got pluck enough to slay his enemy and risk the gallows can do anything," answered Alfonso.

"What do you want me to do?" inquired Jack.

"If I die, cut it out."

"And then?"

"Hide it somewhere. I can't tell you where. We must think."

Suddenly a mine-boss came along, with gentle, cat-like footsteps.

"What are you two skulking for?" he asked, exhibiting a rattan, his badge of office.

"Who's skulking?" asked Alfonso, savagely.

"You are."

The murderer looked at him with a foreboding gleam in his eye.

"Pedro," he said, "I warned you once before not to interfere with me."

"It is my duty."

"Let me alone; I'm a desperate man, and I'd just as soon be dead as working here. Do you understand?"

"I understand that you are threatening me," answered Pedro, "and I shall report you."

This "report" meant fifty lashes on the bare back of the prisoner, delivered publicly before retiring to rest.

Alfonso gnashed his teeth savagely.

"Take care," he said.

"I shall report you twice if you do not instantly go to work."

This was intended to convey the fact that the punishment would be doubled, and the number of lashes increased to one hundred.

Alfonso's eyes glared like those of a wild beast.

Jack shrank back, for he felt sure that some terrible tragedy was about to take place.

In any case of disobedience reported by the overseers, the convicts were unmercifully flogged with a rawhide, and Alfonso had been treated to that kind of discipline twice during his period of incarceration.

What wonder that a man condemned for life to the most degrading drudgery, who had no hope of a commutation of his sentence, and who could only expect to die in his chains, should rebel when he thought himself persecuted by those in authority over him?

"I have warned you," said Alfonso, in a strangled voice.

"And I have warned you," replied the keeper.

"Recollect that I have already killed one man."

"Bah!" replied Pedro, the keeper, drawing a pistol. "If you were so much as to raise your little finger toward me, I would stretch you a corpse on this floor."

"What should I be doing to let you?" asked Pedro, with a sneer which was peculiarly aggravating.

Alfonso breathed heavily.

"Do you mean to report me?" he demanded.

"Certainly I do, and you know very well what that means."

"Yes—I—do," answered the convict—speaking with difficulty.

"Shall I tell you?"

"No need of it; my back bears the record."

"For two days in succession, my friend," exclaimed Pedro, who seemed to take a pleasure in tormenting the convict, "you will be flogged in the presence of your companions."

Alfonso's herculean frame trembled, and he shook like an aspen leaf.

"God!" he cried, uplifting his eyes to the dark rock above him, "my time has come—and his."

With a wild gasp he sprang upon Pedro.

Harkaway would have interfered, but he saw that it was useless to make any attempt to separate them.

It was a duel to the death between these two men.

He would only have endangered his own life and have done no good.

Pedro discharged his pistol, as he had threatened to do, but Alfonso received the bullet in his left shoulder without flinching. With his right hand he drove the sharp point of his pick into the skull of the keeper.

Pedro fell with a groan.

Again and again the infuriated convict struck him until, in his mad frenzy, he had smashed his skull into a jelly.

"What have you done?" asked Jack.

"Settled him, any way. There is one mine-boss gone, and the world is rid of another petty tyrant," replied Alfonso.

"And what will become of you?"

"I shall solve the great problem, my friend," said the convict, now a double murderer.

He stooped and picked up the pistol which Pedro had allowed to drop from his hand.

"You do not mean that you will take your own life?"

"That is precisely what I do mean."

"How?"

"Look here!" exclaimed Alfonso. "I take you to be a sensible man, though young. What have I, a slave, to live for? Is it any pleasure to me to exist, as I have been existing for the last year, since I have been in this infernal place?"

"No, I admit that; but——"

"What?"

"While there is life there is hope."

"Not for such as I. Have I not killed this man, almost in self-defense, I may say?"

"I admit it."

"Well, if I live a few hours more they will seize me, flog me till I am in a dying condition, and then hang me. Why should I not die now?"

Harkaway could not see any valid reason why he should prolong his miserable and forfeited existence.

"You are right," he said. "It is clear that suicide in your case is an atonement, if not a virtue."

"Comrade," exclaimed Alfonso, "they say that those who are about to die see future events clearly."

"I have heard that," replied Jack.

"I can see you free and happy."

"Ha!" cried Jack. "When?"

"Before long. I congratulate you. Do not forget what I told you about the diamond."

"I will not."

"Cut it out as soon as I am dead, and then give the alarm at the mouth of the shaft."

"I will; but where shall I put it?"

Alfonso looked wildly around him.

"I don't know. I can't tell," he replied. "My brain is in a whirl. I hear strange voices ringing in my ears. Angels are talking to me. I am conversing with the spirits of the mighty dead and they bid me come to them."

Jack saw now that the man was crazed.

His troubles and his hard lot had weakened his mind, and he was no longer responsible for his actions.

What ought he to do under the circumstances?

If he snatched the pistol from his hand, he would run the risk of being shot, and it would be no charity to the poor wretch to save his life in order that, after cruelly torturing him, the authorities at the mines might take it in a few hours.

Holding out his hand, he said:

"Good-by."

The murderer grasped it warmly.

"You say good-by! Have you anything to add?" he asked.

"Yes. God bless you and——"

Jack hesitated.

"What?"

"Forgive you, for His Son's sake."

"Good! *Adios*, signor."

These were the last words that Alfonso spoke, for he placed the muzzle of the pistol against his right temple and fired.

There was a loud report, which gave out cavernous echoes, a thick smoke, which nearly obscured the light of the lamp, and the murderer fell prostrate over the corpse of the mine boss.

The bullet had done its work only too well.

He died without a word, a sigh, or a groan.

CHAPTER VII.

MISS VANHOOTEN TRAVELS.

Lord Maltravers took care that the papers, containing an account of Harkaway's adventure in the private box at the California theatre with Elise Holt should reach Miss Vanhooten.

Lena read the account with surprise and indignation.

"He cannot love me," she said, "or he would not intrigue with a married woman."

She tried to harden her heart against men in general, and Jack in particular.

It was singular that she could not succeed, however, for she had to confess to herself that she still loved him.

A copy of the paper had also been sent to Mrs. Vanhooten, who gloried in it.

"My dear child," she exclaimed, "what did I always tell you about that man?"

"I know you never liked him, mamma."

"Is not my judgment verified now?"

"Perhaps," replied Lena, "though one ought not always to believe what one reads in the papers."

"Why not?"

"Oh, because they are untrustworthy nine times out of ten," said Lena, who wished to defend her absent lover, no matter how strong the proofs might be against him.

"You should have married Maltravers."

"How could I, when he has a wife alive? What nonsense you talk, mamma! He killed the poor creature, and if he is ever caught he will be hanged."

"Not at all," answered Mrs. Vanhoosen. "I have had a letter from him, in which he says that he is about to return to England. No one here cares to prosecute him. Who will send after him? Is the district-attorney going to the expense of extraditing him?"

"Really, mamma, I do not know, and I don't care to argue the point with you," said Lena, with a weary air.

"Why not?"

"It fatigues me."

"You should marry Lord Maltravers."

"I shall never marry now," answered Lena. "I intend to devote myself to a life of single blessedness."

"Why so?"

"Because——"

She paused abruptly.

"I know what you would say," exclaimed Mrs. Vanhoosen. "This man Harkaway, whom you love, has proved himself unworthy of you, as I always said he was, and therefore you close your heart against every one."

"Have it your own way."

"Are you not foolish?"

"Mamma," said Lena, with sudden energy, "if you taunt me any more I will go into a convent."

"Indeed, you will not. I insist upon you visiting Europe with me again," replied Mrs. Vanhoosen.

"What if I refuse?"

"I will disown you; turn you into the street, and you can shift for yourself, ungrateful girl," replied her mother, passionately.

"You expect that I will meet Maltravers and marry him, after all that has occurred?"

"I do."

"Then you are greatly mistaken," said Lena, obstinately.

"My dear child," continued her mother, "consider all you are losing. If you meet Maltravers in Paris, you can get married, for he has no wife alive now, and go and live in Switzerland, or some quiet place, till this affair has blown over."

"Never!"

At this moment Alfred Vanhoosen, who had been absent in Albany for some little time, entered the room.

His presence was unexpected, but it was as welcome as the flowers in May to Lena, who dearly loved her brother.

She knew that he was at all times her friend and her protector.

"Alfred!" she exclaimed, grasping his hand, "I am so glad to see you!"

"And I to see you, sis. Mamma, how are you?"

"Ailing, my dear," replied Mrs. Vanhoosen. "My head has troubled me very much since you have been away."

"Sorry for that. What have you got in your hand, sissy?"

"A California paper."

"I thought as much. What is it about?" asked Alfred.

"That affair of Mr. Harkaway's, in San Francisco," replied Lena.

"Oho! Is that all? You have not seen the *Chronicle* of a later date?"

"No."

He produced a paper, in which he pointed out to her a certain paragraph.

"I presume," he exclaimed, "that Lord Maltravers sends you papers for his own purposes."

"Possibly," she answered, beginning to read.

"Who sends papers to you?" asked Mrs. Vanhoosen, sharply.

"Dick Harvey keeps me posted, and I know just what is going on. This is a game of chess between Harkaway and Maltravers, and I am sorry to say that his lordship has won the first two moves in the game."

"Glad of it!" replied Mrs. Vanhoosen.

"No, mother," said Alfred, "you are not glad in your heart."

"Why not?"

"Because you are too much of a lady and a Christian to wish to see a scoundrel triumph over an honest man."

Mrs. Vanhoosen sat down on the lounge and fanned herself in a vigorous manner.

She did not condescend to make any reply.

Lena read the paragraph which her brother had pointed out to her, and learnt from it some startling facts.

It stated that Harkaway and his friends had been stopped on their way to the Geysers by Vasquez the celebrated bandit, who had been the scourge of California for so long a time.

Harvey had been dangerously wounded, and Jack had been carried off, nobody knew where.

When she had fully mastered the contents of this news item, Lena uttered a loud cry.

Her mother looked at her in astonishment.

"My dear child!" she exclaimed, "what is the matter?"

"Jack has been captured by bandits," replied Lena. "Oh! what shall I—what ought I to do?"

"Shall I tell you, sis?" asked Alfred.

"Oh! yes."

Mrs. Vanhoosen rose and extended her hand.

"Allow me an opportunity to speak, if you please," she said.

"Certainly," replied Alfred; "you are our mother, and we are bound to hear you, although I must say that if I were in Lena's place I would go after Jack."

"Insolent boy!"

"No, mother, I am not insolent; but the girl loves the man, and what is the use of interfering between them?"

"She shall not marry him!"

"I don't want to be undutiful or go against the fifth commandment, mother, which tells us, very properly, to honor our father and mother; but, really, you are wrong in this case."

"Why, may I ask?"

"Mr. Harkaway is an honorable and elegant gentleman in every sense of the word, and by no means a pauper. He can support Lena just as well as you have supported her, and there is no reason why he should not marry her."

Mrs. Vanhoosen tried to speak, but her rising temper rendered her speechless.

Lena began to cry, and put her handkerchief to eyes.

"Oh!" she sobbed; "I shall never see him again."

Alfred Vanhoosen patted her on the cheek with brotherly affection.

"Yes, you will, sis," he replied.

"Oh, no! never, never!"

"I beg your pardon. Jack is not a man very easy to kill, and I don't think Maltravers will get away with him so easily as he thinks."

"God grant it."

"At any rate," continued Alfred, "I will proceed at once to San Francisco and search for him."

"You will?"

"Yes, indeed."

Lena seized him by the hand and looked imploringly in his face.

"Take me with you," she exclaimed. "I shall die if I stay here. This life is intolerable to me."

Alfred looked at his mother, as if he expected some reproach from that proud, ambitious woman.

She was not really bad-hearted, but she was like so many other mothers in the United States who desire their daughters to marry some man from Europe with a title rather than have one of their own race, or at least, one who has nothing but his face and his character to recommend him.

"You are a thankless child, and your conduct is sharper than a serpent's tooth," said Mrs. Vanhoosen.

Lena held out her hand.

"Mamma," she exclaimed, "we must part."

"What! am I to be deserted by my children?"

"Alas! yes. We cannot live together. There is no sympathy between us. My love calls me far away."

Mrs. Vanhoosen became very angry. Her face flushed. She tried to speak, and failed.

Suddenly she uttered a cry. Something seemed to burst in her throat. She fell to the ground heavily.

A stream of blood rushed from her mouth.

In her anger she had broken a blood-vessel, and her life was in danger.

Lena, now greatly alarmed, knelt down and supported her parent's head.

A doctor was sent for, and he did all he could for the unhappy woman, but there was internal hemorrhage, and after lingering for three days, she died.

Tho brother and sister were deeply grieved at their mother's death, but they could not blame themselves for her untimely end.

By her will she had divided her fortune equally between them.

After the funeral, which was largely attended by their numerous friends in New York, they decided to go to California and unravel the mystery which to them attended the fate of Jack Harkaway.

The journey across the continent was delightful.

Everything was so new that they forgot their grief and were happy.

CHAPTER VIII.

THE ESCAPE FROM THE MINES.

Alfonso, the desperate murderer, had effectually put an end to all his earthly sufferings.

Jack quickly recovered from the shock which his death had given him.

Taking a knife with which he was accustomed to eat his dinner, he searched for the spot in the man's leg where he claimed to have hidden the diamond.

It was with very little hope of finding it that he did so.

The whole story seemed like the delirious ravings of a madman. Cutting away the skin, a hard substance fell out, which Jack picked up.

He had been at work in the mines long enough to know what a diamond was.

Holding it to the light, he uttered a cry of surprise, for he saw that he was the possessor of a jewel of the first water and of prodigious size.

Alfonso had not lied to him.

The story was not the invention of a maniac, but a solemn fact.

What should he do with it?

This question could not be decided off-hand, so he slipped it in his pocket, with the reflection that he yet had half the day to think the matter out.

The convicts were only searched at night, before retiring to their quarters.

He was running a great risk, and he knew it.

If a diamond was found upon the person of a convict he was instantly shot.

Not even a drum-head court-martial was held upon him.

A squad of soldiers was ordered up with loaded rifles, and in less time than it takes to tell it the unlucky finder of the stone was dead.

Making his way to the shaft, where he knew a guard was always stationed, Jack went to make his report.

"What do you want, my man?" asked the officer of the guard.

"Come to report, sir," replied Jack.

"Well?"

"I worked with convict No. 9, Alfonso by name. Overseer Pedro accused him of shirking his work, and an altercation ensued. Pedro threatened to report him twice. Alfonso attacked him with his pick. A shot was fired; but Pedro was killed."

"Ha!" cried the officer; "an overseer slain?"

"Yes, captain."

"What were you about, not to prevent it?"

"I was powerless to interfere."

"How so?"

"The whole thing was so sudden, captain," said Jack.

"Where is the assassin?" inquired the officer.

"He is dead."

"Dead also?"

"Yes. He snatched up the pistol of Pedro and shot himself dead."

The officer turned to his men.

"Sergeant," he said, "take a file of the guard. Go into that working and verify the truth of this man's statement."

The sergeant saluted.

"If there are any dead bodies, bring them to the shaft," continued the officer.

He again bestowed his attention upon Harkaway.

"You will consider yourself under arrest," he added.

Jack nodded, and sat down on the ground between two soldiers.

He wondered what would happen next.

Men who live an uncertain life enjoy an excitement similar to that experienced by gamblers.

Jack did not know whether he would live to see the sun set, and yet he felt more inclined to whistle than cry.

At length the dead bodies were brought out and sent up to the surface in the cage.

The officer followed with Jack.

On being informed of the tragedy, the governor of the mines held an examination.

Harkaway told his story with such a straightforward, truthful air, that he was instantly believed.

No blame attached to him.

"It wasn't your quarrel, my good fellow," said the governor, "and I do not see how you could have interfered successfully. These affairs must occur in such a population as ours. It was clearly Pedro's own fault for not using his pistol with more celerity and not taking a better aim. You are discharged."

"Thank you, sir," replied Jack. "Might I ask you one favor?"

"Name it."

"I should like to work in the open air."

"Would you? That is not extraordinary. Most people would."

"Cannot I wash the dirt when it comes out of the mines?"

"We have enough already."

"If I go below I shall see those two men quarreling. It will be enough to drive me crazy, and if I become insane, the State will lose a valuable servant."

The governor laughed.

"I should think you had been a lawyer," he observed.

"Why so?"

"You know how to plead your cause so well."

He paused for a moment, as if reflecting.

"Your answer, excellency," exclaimed the officer.

"To what?"

"This man's prayer."

"Oh, yes. I had forgotten him. His request is granted. I was thinking of something else. Send up the band of the regiment to my house. I have to entertain two strangers to-day. They come from Rio with letters from the Emperor himself."

The governor went away, and Jack was at once taken to a stream, where, standing up to his waist in water, he washed the dirt in a sieve as it was brought to him in a barrow, from the mouth of the mine, by another convict.

The bank of the stream on one side was several feet above the water.

Jack had not been at work long before he heard voices.

Looking up, he saw the governor and two gentlemen.

What was his surprise to see his friends, Harvey and Mr. Mole?

They had evidently lost no time in following him to the Brazils.

He was about to make an exclamation, when Mr. Mole's foot slipped and he fell into the water.

Splashing about like a huge fish, he seized Jack and pulled him down.

They rolled over and over.

"Help! I'm drowning!" cried Mole. "Never could swim a stroke in my life, you know. Help me, you clumsy slave, or I'll have you whipped!"

"No, you won't, Mr. Mole," said Jack, helping him up.

"Ha! you know my name?"

"Yes; look at me."

"Jack!"

The professor delightedly threw his arms round Jack's neck, and hugged and kissed him with every demonstration of unbounded affection.

The governor was astonished.

"What is the matter with your friend?" he asked. "Is he crazy?"

"I don't know," replied Harvey.

The professor waved his hand.

"I've found him," he exclaimed. "It's Jack!"

They speedily made their way to the bank, and Harvey was as much pleased as Mr. Mole had been.

"Jack, my dear old fellow," he said; "thank God you are alive and well."

Turning to the governor, he added:

"This, sir, is the gentleman whose pardon I have brought you from the Emperor."

The governor bowed.

"One of our best prisoners," he replied. "I am sorry to lose him; but, of course, he is free."

Jack was profoundly affected.

"We lost no time in following you," said Harvey. "My wound was not a dangerous one, and as soon as I got well enough to travel, we were off."

That day Jack, in a new suit of clothes, dined with the governor and his friends.

He kept the diamond, which he had cut in San Francisco afterward, and handsomely set.

"For Lena," he said.

They made their way to the city of Rio and took the first steamer for Aspinwall, where they crossed the Isthmus to Panama, and took ship again for 'Frisco.

On their arrival they bought the *Chronicle*, and Jack read a paragraph in the fashionable intelligence:

"Miss Lena Vanhoosen and Mr. Alfred Vanhoosen are staying at Black's Hotel, in the Yosemite Valley."

"Dick," he exclaimed, "we must travel again."

"How?"

"Lena is in California."

That evening they were traveling toward Merced, and the next day they took the stage for the far-famed valley, where they hoped to meet the Vanhoosens.

Of Lord Maltravers they heard absolutely nothing.

He seemed to have disappeared from the scene.

CHAPTER IX.

THE ATTACK ON THE STAGE.

The journey by stage to that wonderful valley which the Indians named the Yosemite has been so often described that we will not take up the time of our readers by dwelling on the marvelous scenery of the Sierras.

Stopping for dinner at Mariposa, which is the first resting-place after leaving Merced, where the railway ends, the stage went on to Clark's Station.

About ten miles from the hotel there is the wonderful grove of big trees, to see which is alone worth a journey of three thousand miles.

When they were nearing the hotel they encountered two shepherds, who were walking in great haste.

"Take care," said one.

"Of what?" asked the driver, pulling up.

"Vasquez is on the road."

"How do you know?"

"He has just attacked the stage coming from Clark's Station. We heard the shots as we were tending our sheep hard by."

"Any one hurt?"

"The driver's killed. There were a lady and a gentleman in the stage. They were carried off."

"Which way did the robbers go?"

"Toward the big trees. It is there Vasquez has his camp."

"And where are you going?"

"To tell the sheriff of Mariposa."

Jack looked at Harvey.

"It seems to me that we ought to go after these robbers," said he.

"I'm willing," replied Harvey.

"My lads," said Jack to the shepherds, "do you know the country about here?"

"Ed does," replied one, indicating his companion.

"All right; you go and mind your sheep. The driver of the stage shall turn round and summon the sheriff of Mariposa, while Ed shall guide my friend and myself to the camp of the robbers."

"And what am I to do?" asked Mr. Mole.

"You, sir, can walk to the hotel and wait for us."

"I'll do it," replied Mole; "for I don't think my poor old legs are strong enough to carry me over hills and over mountains."

Everything was arranged in five minutes.

Jack had a way of organizing which would have done credit to a veteran general.

Ed, the shepherd, was armed with a pistol, and Jack and Harvey were similarly supplied.

"I've got some cooked mutton and some bread close here," said Ed; "and I guess we ought to take it with us, as we shall be hungry before morning."

Jack made no objection, and having put the provisions in a bag, he slung it over his shoulder.

The stage was in the middle of the narrow roadway and the horses were cropping the rich grass which grew by the side.

Lying on the road was the body of the dead stage-driver, who had been shot through the heart.

Jack saw something white on a seat of the stage, and springing up on the wheel, seized it.

It was a handkerchief, and embroidered in one corner was the name, "Lena V."

"Hello!" cried Jack.

"What's up?" asked Harvey.

"My dear Dick," replied Jack, "there is somebody besides Vasquez in this outrage."

"How?"

"Here is Lena Vanhoosen's handkerchief, or I am very much mistaken."

"Is that so?"

"Yes, sir, and Vasquez would not want to carry her off unless Lord Maltravers was with him."

"True enough," said Harvey.

Jack laughed in a quiet, satisfied manner.

"They reckoned without one thing," he exclaimed. "They thought I was still working in the mines of Brazil, and little imagined that Jack Harkaway was on their track."

"They'll find it out, though, before long," said Harvey, with a grin.

"You bet."

"Now, let us go ahead. They haven't much the start of us."

"I'm ready."

Jack turned to the shepherd.

"Can you follow a trail?" he asked.

"I guess so, boss," was the reply.

"I don't want you to 'guess.' Say whether you can or not."

"Well, then, I can."

"Good enough!"

"There isn't an Indian that can beat me at tracking anything, whether it is man or beast."

"Start right away," said Jack, "and you shall have a hundred dollars if we come up with Vasquez before nightfall."

The shepherd looked carefully around, and soon found the trail, heading off like a bloodhound who had got the scent.

For six miles they toiled up-hill all the way until they reached the vicinity of the big trees.

The gigantic monarchs of the forest struck them with awe.

"Look at this wilderness," said Jack. "Do not these solitary trees give you an idea of grandeur that you never had before?"

"They do, indeed," replied Harvey.

The shepherd held up his hand warningly.

"Danger," he whispered.

"Where?" asked Jack.

"Right here. Look!"

He pointed to the left, and Jack saw a group which riveted his attention.

A little way off was Vasquez. Near him were Lord Maltravers, Lena, and Alfred Vanhoosen, the two latter with their arms bound behind their backs.

Two men, attendants of Vasquez, guarded the prisoners, who leant disconsolately against the huge trunk of one of the trees.

"Do as I tell you!" exclaimed Vasquez.

"What?" asked Maltravers.

"Shoot the brother."

"But the girl will never forgive me."

"Ah, pshaw! I'll do it for you," said the robber.

Maltravers endeavored to restrain him, but he broke from him, and, presenting a pistol at Alfred Vanhoosen, fired.

Alfred fell bleeding at his sister's feet.

But retribution, swift and sure, was at hand.

Jack aimed at him, and brought him down with a well-directed bullet.

"Fire, Dick, fire!" he cried. "Shoot every mother's son of them!"

Ed, the shepherd, and Harvey were not slow to obey this injunction.

The two attendant robbers were hit before they could realize that they were in the presence of enemies.

In fact, the surprise was complete.

Lord Maltravers took in the situation at a glance.

"Harkaway!" he exclaimed, while his knees trembled under him.

"I am here," replied Jack.

"Is it you, or your ghost?" he asked.

"Not much ghost about me."

Maltravers saw that resistance was useless, and at the same time he recognized the unpleasant fact that any attempt at escape would be futile.

He was a doomed man.

Yet he made one effort to save himself.

"Will you let me go if I surrender?" he asked.

"I will not."

Lena Vanhoosen held out her hands, which she had separated from the bonds that bound her.

"Save me! oh, save me!" she cried.

Maltravers hesitated a moment.

Then he leveled his pistol at Lena, as if his mind was fully made up.

"If I cannot have her, you shall never possess her!" he cried, savagely.

The next moment his pistol exploded, and Lena, the blood flowing from a wound in her breast, fell to the ground.

"Villain and coward!" exclaimed Jack, as he emptied his revolver in the wretch's body.

Maltravers staggered and sank on his knees.

"Curse you!" he said, as he feebly discharged his pistol at Jack.

The shot went wide of the mark, but it struck the shepherd, who was mortally wounded.

It was a scene of carnage.

Alfred Vanhoosen was dead, so was Vasquez and his two followers, Maltravers was dying, and Lena was in a like condition, while the shepherd would never speak again.

Frantic with grief, Jack threw himself on the body of his beloved.

"My darling, my baby!" he exclaimed; "speak to me."

Lena raised her fast glazing eyes to him, but she could not utter a word.

With bitter, scalding tears, Jack watched her die.

Let us draw a veil over this affecting scene.

Jack and Harvey went back to the hotel at Clark's Station and sent men for the bodies.

The funeral of the slain took place at Mariposa.

Then Harkaway, Mr. Mole and Harvey returned to England by way of New York.

It was long before he forgot his lost love, and for years the name of Lena Vanhoosen was as dear to him as that of Lord Maltravers was hateful.

THE END.

Transcriber's Notes:

This novel was originally serialized in Frank Leslie's Boys & Girls Weekly from July 5-19, 1879. This text is derived from the original serialization.

Added table of contents.

Obvious punctuation errors have been corrected.

Images may be clicked to view larger versions.

Added missing "to" ("giving it to him").

Changed "day day" to "day" ("find a fool like you every day").

Changed "eat" to "ate" ("ate a little salad").

Changed "persuade" to "persuade."

Changed "carrried" to "carried" ("carried the knife between").

Changed "wan't" to "want" ("want to know").

Corrected speaker from Pedro to Alfonso after "Look here!"

Changed "too" to "to" ("And I to see you, sis.").

*** END OF THE PROJECT GUTENBERG EBOOK THE SLAVE OF
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The Slave of the Mine; Or, Jack Harkaway in 'Frisco.

By BRACEBRIDGE HEMYNG.

CHAPTER I.

THE GAMBLING-HOUSE.

"RATHER like this game?"

"Well, I should smile if you didn't. Luck's that as is for you now, you can bet."

"Perhaps," said the first speaker; "but I don't propose to follow him."

"What?"

"The second speaker sprang from his chair in amazement."

"No, I flatter myself I know when to stop. I have played at Baden and Monaco, in the clubs of London and the halls of Paris, as well as the gambling saloons of the West, and I'm not to be picked up for a flat."

"That's sure; but look at him; as sure as my name is Dan Markham, and I'm known as a pro at gambling from here to Cheyenne and Virginia City, and let him alone Omaha, you're wrong."

"Why?"

"When you've got a man of luck, play it for all it is worth."

"You think so?"

"My friend, fortune is within your grasp. Play as the ace and copper the jack, I tell you," replied Dan Markham.

"Thank you. I don't want any one to dictate to me."

With this quiet answer the first speaker piled up his chips and received an equally large pile of gold twenty-dollar pieces, which he placed in an inside pocket of his coat. Then he laughed heartily.

"I don't know why I do this sort of thing," he remarked. "It isn't the cause I want the money."

"I'll tell you," replied the gambler.

The lucky player rose from his seat and the game went on, there being a dozen or more men present who were intent upon it.

The game was fast. Slowly and solemnly the dealer took the cards out of the box, and with equal solemnity the play was moved their checks as their fancy dictated.

The first speaker was a man of a decided English cast of countenance, and the profusion of side whiskers which he wore strengthened his British look.

He was well dressed, handsome, though somewhat haggard, as if he suffered from want of sleep, or had some care gnawing at his heart.

A gold ring, set with turquoise and diamonds, sparkled on his finger, and his watch chain was

heavy and massive. The gambler was probably forty years of age, which was ten or twelve more than his companion, and his face bore traces of drink and dissipation; but there was a shrewd, good-natured twinkle in his eye which showed that he

was not a bad-natured man in the main. In reality, Dan Markham was known all over the Pacific Slope as a good fellow.

Retiring to the lower end of the room, the first speaker accepted a glass of wine which was handed

him by a negro waiter who attended on the supper-table.

"You were saying, Mr.—er—Mr.," he began. "Markham," replied that individual.

"Ah, yes! Thank you! Well, you were observing—"

"Just this: I know why a man plays, even though he's well fixed and has got heaps of shag."

"Do you?"

"Yes, Mr.—er—Mr.," continued Markham, imitating his companion's tone in rather a mocking manner.

"Smith. Call me Smith."

"All right, Smith; you play because you want the excitement. That's the secret of it. You've got no home."

"That's true."

"No wife?"

"No."

"Exactly. If a man's got a home, and the comforts, and the young ones, and in fact all that the word implies, he don't want to go to a gambling saloon. No, sir. It follows like you and me that back the tiger."

The person who had designated himself as Mr. Smith smiled.

"You are an observer of human nature?" he said.

"Well, I guess so. Pete?"

"Yes, sah!" replied the negro.

"Give me some of that wine. Darn your black skin, what do I keep you for?"

"You don't keep me, sah!" replied the negro.

"Don't I, by gosh? It's me, and fellows like me, that keep this saloon a-going, and that keeps you."

Pete made no reply, but opened a new bottle and handed the gambler a glass of the sparkling wine.

"Going to play some more, stranger?" asked Dan.

"I may and I may not. As I feel at present I shall look on," replied Mr. Smith.

"How long have you been in this country?" continued Dan.

"All my life."

"H'y?"

"I was born here."

"Whereabouts?"

"In Maine."

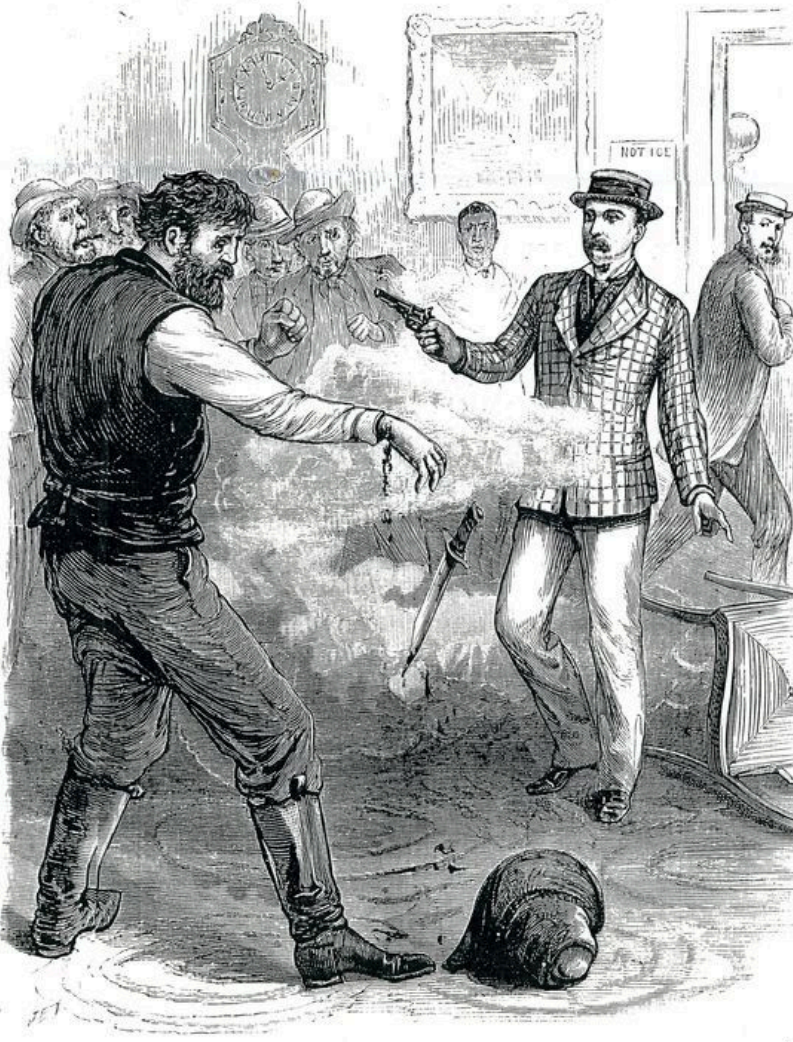
"Oh, come now; you can't play that on me. You're a Butcher."

Mr. Smith colored a little and looked rather vexed.

"Doesn't that strike you, my friend?" he said, "that you are a trifle inquisitive?"

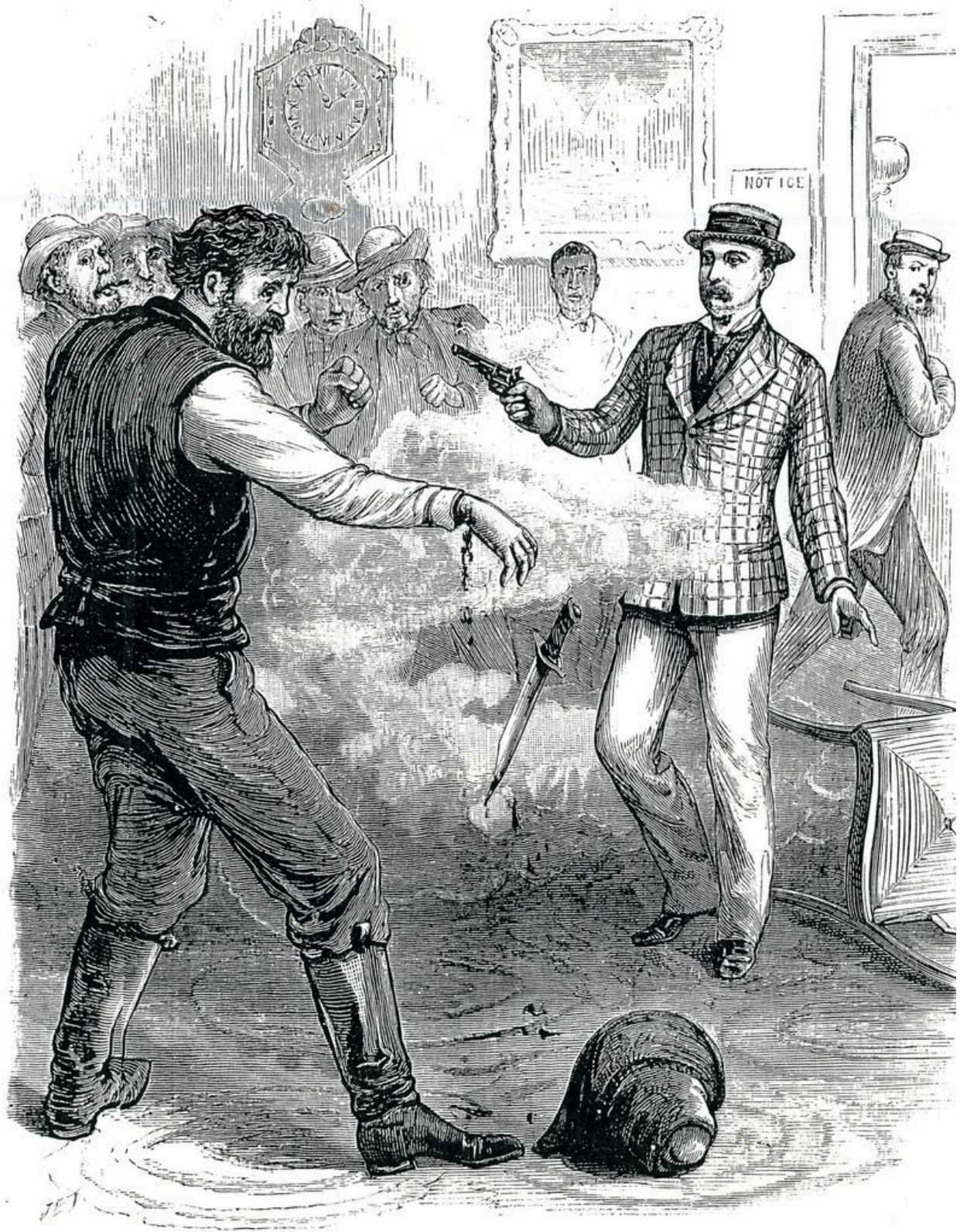
"It's my way."

"Then all I have to



"THE BULLET STROCK MARKHAM ABOUT THE MIDDLE OF THE WRIST, AND, WITH A FEARFUL OATH, HE ALLOWED HIS KNIFE TO DROP ON THE FLOOR."

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